



2025/0360(COD)

16.7.2026

AMENDMENTS

125 - 328

Draft opinion

Alex Agius Saliba

(PE789.877v01-00)

Amending Regulations (EU) 2016/679, (EU) 2018/1724, (EU) 2018/1725, (EU) 2023/2854 and Directives 2002/58/EC, (EU) 2022/2555 and (EU) 2022/2557 as regards the simplification of the digital legislative framework, and repealing Regulations (EU) 2018/1807, (EU) 2019/1150, (EU) 2022/868, and Directive (EU) 2019/1024 (Digital Omnibus)

Proposal for a regulation

(COM(2025)0837 – 2025/0360(COD))

AM_Com_LegOpinion

Amendment 125
Piotr Müller

Proposal for a regulation
Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

Amendment

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. ***This Regulation should be followed without delay by further and more ambitious simplification of the digital legislative framework.*** Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. ***Such simplification should strengthen the competitiveness of European businesses, including by protecting sensitive European data, know-how and trade secrets against undue access by third-country entities, and should fully respect the competences of the Member States and the principle of subsidiarity.*** The amendments also seek to provide clarity to individuals.

Or. en

Amendment 126
Arba Kokalari

Proposal for a regulation
Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

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(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules ***and potential overlaps of requirements***, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. ***This Regulation should be seen as a first step towards further simplification of the Digital Rulebook and further efforts to reduce fragmented enforcement of Union rules.*** Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

Or. en

Amendment 127

David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

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(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. ***The Digital Fitness Check should assess the interlinks and effects across the digital acquis and should not be used as a means to justify structural amendments or deregulation prior to such assessment.*** Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. The amendments also seek to provide clarity to individuals.

Or. en

Amendment 128
Sophia Kircher

Proposal for a regulation
Recital 3 a (new)

Text proposed by the Commission

Amendment

(3a) To further strengthen the Union's long-term competitiveness, the Commission should, without undue delay, review the Union's digital acquis, including Regulation (EU) 2016/679, on the basis of a comprehensive impact assessment. The review should identify further targeted simplification measures to reduce unnecessary regulatory burdens, improve legal certainty and facilitate the responsible availability and use of data, which are essential for innovation, trustworthy artificial intelligence and the European data economy, while preserving the high level of protection guaranteed under Union law.

Or. en

Amendment 129
Sophia Kircher

Proposal for a regulation
Recital 4

Text proposed by the Commission

Amendment

(4) Given the foundational role of data **in driving value-creation** in the digital economy, and pursuant to the objectives of the Communication **for** a European Data Union Strategy, the amendments **presented in** this Regulation **to the** legislative framework **regarding data seek to build** a coherent and cohesive regulatory **framework for the availability and use of data**, streamlining **and consolidating the data regulatory framework into only** two legal acts, namely **Regulations** (EU) 2016/679⁵ and (EU) 2023/2854⁶ **of the European Parliament and of the Council,**

(4) Given the foundational role of data **as a strategic asset for innovation, productivity, competitiveness and value creation** in the digital economy, and **recognising that the Union's long-term economic resilience and technological sovereignty depend on the availability and responsible use of data, it is necessary to establish a coherent, simplified and future-proof regulatory framework for data.** Pursuant to the objectives of the Communication **on** a European Data Union Strategy, the amendments **introduced by** this Regulation **seek to consolidate the**

from currently five different applicable acts. The amendments seek to cut unnecessary administrative costs and stimulate the availability of data as a prerequisite for supporting competitive digital businesses in the Union, while maintaining the highest standard of protections for privacy, personal data protection, and fair business practices, and ensuring core regulatory objectives, including compliance with EU and national competition law.

Union's legislative framework on data into a coherent and cohesive regulatory architecture by streamlining the applicable rules into two legal acts, namely Regulation (EU) 2016/679 and Regulation (EU) 2023/2854, replacing the current framework consisting of five directly applicable legal acts. By reducing unnecessary administrative burdens, increasing legal certainty and facilitating the availability, sharing and reuse of data, these amendments aim to strengthen the Union's innovation capacity, foster the development and scaling of competitive digital businesses, and unlock the full potential of the European data economy. At the same time, the simplification of the regulatory framework should maintain the highest standards of privacy, the protection of personal data, cybersecurity and fair business practices, while safeguarding the core regulatory objectives of Union law, including effective compliance with Union and national competition law.

⁵ REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

⁶ REGULATION (EU) 2023/2854 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 13 December 2023 on harmonised rules on fair access to and use of data and amending Regulation (EU) 2017/2394 and Directive (EU) 2020/1828 (Data Act)

Or. en

Amendment 130

Proposal for a regulation
Recital 4

Text proposed by the Commission

(4) Given the foundational role of data in driving value-creation in the digital economy, and pursuant to the objectives of the Communication for a European Data Union Strategy, the amendments presented in this Regulation to the legislative framework regarding data seek to build a coherent and cohesive regulatory framework for the availability and use of data, streamlining and consolidating the data regulatory framework into only two legal acts, namely Regulations (EU) 2016/679⁵ and (EU) 2023/2854⁶ of the European Parliament and of the Council, from currently five different applicable acts. The amendments seek to cut unnecessary administrative costs and stimulate the availability of data as a prerequisite for supporting competitive digital businesses in the Union, while maintaining the highest standard of protections for privacy, personal data protection, and fair business practices, and ensuring core regulatory objectives, including compliance with EU and national competition law.

⁵ REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

Amendment

(4) Given the foundational role of data in driving value-creation in the digital economy, and pursuant to the objectives of the Communication for a European Data Union Strategy, the amendments presented in this Regulation to the legislative framework regarding data seek to build a coherent and cohesive regulatory framework for the availability and use of data, streamlining and consolidating the data regulatory framework into only two legal acts, namely Regulations (EU) 2016/679⁵ and (EU) 2023/2854⁶ of the European Parliament and of the Council, from currently five different applicable acts. The amendments seek to cut unnecessary administrative costs, ***in particular for small and medium-sized enterprises and small mid-cap enterprises***, and stimulate the availability of data as a prerequisite for supporting competitive digital businesses in the Union, while maintaining the highest standard of protections for privacy, personal data protection, and fair business practices, and ensuring core regulatory objectives, including compliance with EU and national competition law. ***The consolidation should not result in new administrative requirements being introduced through implementing or delegated acts.***

⁵ REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

⁶ REGULATION (EU) 2023/2854 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 13 December 2023 on harmonised rules on fair access to and use of data and amending Regulation (EU) 2017/2394 and Directive (EU) 2020/1828 (Data Act)

⁶ REGULATION (EU) 2023/2854 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 13 December 2023 on harmonised rules on fair access to and use of data and amending Regulation (EU) 2017/2394 and Directive (EU) 2020/1828 (Data Act)

Or. en

Amendment 131
Arba Kokalari

Proposal for a regulation
Recital 5

Text proposed by the Commission

(5) Acknowledging the iterative evolution of horizontal and sector-specific rules, it is indispensable to address also overlaps in specific provisions that result in unnecessary duplications of administrative burdens. This is the case in requirements across several rules for reporting following cybersecurity and related incidents, where digital solutions, as proposed in this Regulation, can bring an immediate relief to businesses across all concerned sectors.

Amendment

(5) Acknowledging the iterative evolution of horizontal and sector-specific rules, it is indispensable to address also overlaps in specific provisions that result in unnecessary duplications of administrative burdens **and increased legal complexity**. This is the case in requirements across several rules for reporting following cybersecurity and related incidents, where digital solutions, as proposed in this Regulation, can bring an immediate relief to businesses across all concerned sectors.

Or. en

Amendment 132
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Recital 6

Text proposed by the Commission

(6) ***Similarly, with the iterative regulation of online platforms over the past years, more recent rules have***

Amendment

deleted

established a clearer and more ambitious framework than some of the predating rules, rendering them obsolete. It is therefore necessary that the legal framework evolves, eliminating any unnecessary duplications that add legal complexity.

Or. en

Amendment 133
Arba Kokalari

Proposal for a regulation
Recital 6

Text proposed by the Commission

(6) Similarly, with the iterative regulation of online platforms over the past years, more recent rules have established a clearer and more ambitious framework than some of the predating rules, rendering them obsolete. It is therefore necessary that the legal framework evolves, eliminating any unnecessary duplications that add legal complexity.

Amendment

(6) Similarly, with the iterative regulation of online platforms over the past years, more recent rules have established a clearer and more ambitious framework than some of the predating rules, rendering them obsolete. It is therefore necessary that the legal framework evolves, eliminating any unnecessary duplications that add legal complexity. ***In cases where predating rules have been kept, these should be further assessed and analysed whether they still serve a function or whether they can be withdrawn at a later stage.***

Or. en

Amendment 134
Sophia Kircher

Proposal for a regulation
Recital 8

Text proposed by the Commission

(8) While the importance of data intermediation services is recognised in the context of many initiatives supporting data

Amendment

(8) While the importance of data intermediation services is recognised in the context of many initiatives supporting data

sharing and collaboration, the rules of Regulation (EU) 2022/868 on data intermediation service providers should be clarified. In particular, the definition of such providers should be made more precise. It should eliminate elements that served merely as illustrative examples, rather than exceptions. Moreover, it should address loopholes resulting from ambiguous formulations, notably as regards the notion of ‘closed group’. Services should not be eligible to register as data intermediation services where they are exclusively used by a closed group of companies and where any extension of that group of companies can only be decided by that group and not the service provider. More importantly, making this emerging market subject to a compulsory regime has created unnecessary compliance costs. At this stage of market development, a voluntary regime, allowing neutral players to distinguish themselves from other players, appears sufficient. Also, in order to enable sustainable business models, the regime should be made less strict by abolishing the requirement for a legal separation between data intermediation services and other value-added services that a service should be allowed to offer, replacing it with a functional separation while keeping certain safeguards. The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-

sharing and collaboration, the rules of Regulation (EU) 2022/868 on data intermediation service providers should be clarified. In particular, the definition of such providers should be made more precise. It should eliminate elements that served merely as illustrative examples, rather than exceptions. Moreover, it should address loopholes resulting from ambiguous formulations, notably as regards the notion of ‘closed group’. Services should not be eligible to register as data intermediation services where they are exclusively used by a closed group of companies and where any extension of that group of companies can only be decided by that group and not the service provider. More importantly, making this emerging market subject to a compulsory regime has created unnecessary compliance costs. At this stage of market development, a voluntary regime, allowing neutral players to distinguish themselves from other players, appears sufficient. Also, in order to enable sustainable business models, the regime should be made less strict by abolishing the requirement for a legal separation between data intermediation services and other value-added services that a service should be allowed to offer, replacing it with a functional separation while keeping certain safeguards. The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-

management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union. ***on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union.***

management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union.

Or. en

Amendment 135

Piotr Müller

Proposal for a regulation

Recital 9

Text proposed by the Commission

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and safeguards the incentives of those who invest in data technologies.

Amendment

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and safeguards the incentives of those who invest in data technologies. ***Data access obligations should remain proportionate and should not impose disproportionate technical or financial burdens on data holders, in particular small and medium-sized enterprises and small mid-cap enterprises, or undermine the protection of trade secrets which are essential to preserve the competitive advantage of European companies.***

Or. en

Amendment 136

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 9

Text proposed by the Commission

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and safeguards the incentives of those who invest in data technologies.

Amendment

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and safeguards the incentives of those who invest in data technologies. ***Data access should not be interpreted as mere viewing, consultation, or in-situ use where such arrangements prevent users or third parties chosen by them from effectively exercising the rights provided for under Regulation (EU) 2023/2854. Data access should include retrieving data, including by transmission or downloading of data.***

Or. en

Amendment 137

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 9 a (new)

Text proposed by the Commission

Amendment

(9a) Connected products may be designed so that product data and related service data are accessible from on-device storage, from a local server or gateway on the user's own network, or from a remote server operated by the manufacturer or a third party. The choice among these architectures should not be used to deprive the user, in practice, of the direct and real-time access guaranteed by Article 3. Consistent with the data minimisation principle referred to in

Recital 8, and given that increasingly available technology permits data to be processed locally without transmission to external infrastructure, a manufacturer should not make the exercise of the user's rights under this Regulation conditional upon the routing of data through, or storage of data on, infrastructure controlled by the manufacturer or a third party, where the same functionality can be achieved through an interface on the user's local network. The user should further be free to decide whether product data and related service data are transmitted beyond that local network, without prejudice to processing strictly necessary for cybersecurity, safety recalls, or compliance with a legal obligation to which the manufacturer is subject.

Or. en

Justification

Explanation for new definition, to be found under amendments to Regulation (EU) 2023/2854, Article 2a and 2b.

Amendment 138 **Piotr Müller**

Proposal for a regulation **Recital 10**

Text proposed by the Commission

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union. However,

Amendment

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union. However,

disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty.

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The disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty. The unauthorised transfer of European know-how and trade secrets to such jurisdictions constitutes a risk to the competitiveness of European industry. It is therefore necessary and proportionate to provide data holders with an effective and workable possibility to protect their trade secrets against such risks.

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Or. en

Amendment 139

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 10

Text proposed by the Commission

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trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union. ***However, disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty.***

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union.

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Or. en

Amendment 140

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 11

Text proposed by the Commission

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders

Amendment

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may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

Or. en

Amendment 141
Maria Grapini

Proposal for a regulation
Recital 11

Text proposed by the Commission

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that

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trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets. ***Data that contain trade secrets or whose disclosure could enable a trade secret to be deduced should be exempted from the obligations to make data available or transfer data laid down in this Regulation, in order to ensure an adequate level of trade secret protection.***

Or. ro

Amendment 142
Piotr Müller

Proposal for a regulation
Recital 11

Text proposed by the Commission

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

Amendment

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse ***the access to data where such access could lead to*** the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets ***and, where strategic data***

are concerned, the Union's economic security.

Or. en

Amendment 143

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 12

Text proposed by the Commission

Amendment

(12) The activation of the refusal mechanism should remain voluntary, and the demonstration done only upon its activation. Data holders should not be required to conduct a full-scale analysis or demonstration of the level of trade secret protection in third countries or by a third country entity as a precondition to be able to substantiate their refusal to sharing data or to disclose trade secrets. In their demonstration, data holders may take into consideration various factors, such as insufficient or inadequate legal standards, poor or arbitrary enforcement, historical infringements, foreign disclosure obligations conflicting with Union law, limited legal recourse or remedies for Union entities, the strategic misuse of procedural tactics to undermine competitors, or undue political influence. Given the diverse range of entities, third countries, and data sharing scenarios involved, data holders should focus their assessment and demonstration on pertinent risks and act accordingly, including by setting appropriate safeguards or activating the refusal mechanism. Refusals should be clear, proportionate, and tailored to the specific circumstances of each case, rather than being applied systematically or in a

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generalized manner across an entire third country.

Or. en

Amendment 144

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 13

Text proposed by the Commission

Amendment

(13) An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses. The objective is therefore to strengthen the safeguards for trade secrets by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks. This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or intermediary entities. Control may be exercised directly or through other means,

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even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.

Or. en

Amendment 145

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 14

Text proposed by the Commission

(14) *Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent*

Amendment

(14) *Trade secret should not be used as a pretext to deny legitimate access to data. Any refusal of access to data protected by a trade secret must constitute a measure of last resort. Before refusing access, the data holder must offer a viable and secure alternative. This alternative must guarantee legitimate data use while ensuring the non-disclosure of trade secrets. Such alternatives may include confidentiality agreements, restricted access protocols subject to regular audits, technical measures for data aggregation or anonymization, technical architectures and standards that preserve confidentiality.*

authority, in court, or through dispute settlement bodies.

Or. en

Amendment 146

Arba Kokalari

Proposal for a regulation

Recital 14

Text proposed by the Commission

(14) Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be ***limited to justified, exceptional circumstances***, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. ***Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities.*** This demonstration should be provided in writing without undue delay to the user or third party ***and proportionate to the case at hand.*** All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.

Amendment

(14) Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage ***without having to disclose their most invaluable assets.*** While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be justified in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. This demonstration should be provided in writing without undue delay to the user or third party. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.

Or. en

Amendment 147
Piotr Müller

Proposal for a regulation
Recital 14

Text proposed by the Commission

(14) Protecting trade secrets from those vulnerabilities is essential for European **industries** to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.

Amendment

(14) Protecting trade secrets from those vulnerabilities is essential for European **businesses** to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.

Or. en

Amendment 148
Piotr Müller

Proposal for a regulation
Recital 15

(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities that previously imposed broader obligations on businesses, it is necessary to narrow the scope of Chapter V of that Regulation from ‘exceptional need’ to ‘public emergencies’. The concept of ‘public emergencies’, which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are invoked only under well-defined, urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant and proportionate to responding, mitigating, or supporting the recovery from public emergencies. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council¹¹ does not address public emergencies, it is essential to preserve the role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case such enterprises are allowed to claim compensation.

¹¹ Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No

(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities that previously imposed broader obligations on businesses, it is necessary to narrow the scope of Chapter V of that Regulation from ‘exceptional need’ to ‘public emergencies’. The concept of ‘public emergencies’, which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are invoked only under well-defined, urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant and proportionate to responding, mitigating, or supporting the recovery from public emergencies ***and remain strictly limited to what is necessary to address the ongoing public emergency***. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council¹¹ does not address public emergencies, it is essential to preserve the role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case such enterprises are allowed to claim compensation.

¹¹ Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No

322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).

322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).

Or. en

Amendment 149

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 16

Text proposed by the Commission

Amendment

(16) In order to mitigate legal uncertainties that could discourage innovative business models, it is necessary to address the substantial compliance ambiguities and burdens associated with the provisions on smart contracts executing data sharing agreements under Article 36 of Regulation (EU) 2023/2854. The absence of harmonised standards and clear definitions for key concepts such as ‘robustness’, ‘access control’, and ‘consistency with contractual terms’, combined with the requirement for a ‘safe termination or interruption mechanism’ potentially incompatible with decentralised or public blockchain architectures built on immutable ledgers, posed challenges to innovators from a cost and opportunity perspective. Additionally, the ambiguity surrounding the performance of the conformity assessment under Article 36(2) of that Regulation risks imposing disproportionate burdens. The elimination of Article 36 of Regulation (EU) 2023/2854 would therefore promote the development and market introduction of new business models, foster innovation,

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and reduce barriers for emerging technologies.

Or. en

Amendment 150

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 17

Text proposed by the Commission

Amendment

(17) Certain data processing services, which do not fall within the Infrastructure as a Service (IaaS) delivery model, are custom-made to the needs or ecosystem of a customer. The provision of such data processing services is based on time-intensive pre-contractual and contractual negotiations to determine the specific requirements of the customer and subsequent technical efforts to customise the data processing service and to deliver a tailored solution. Those are services not provided off-the-shelf and are personalised to the needs of a customer to provide a tailored solution where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer where the majority of features and functionalities would not be usable for a customer without prior adaptation by the provider. Those services differ from custom-built data processing services referred to in Article 31(1) of Regulation (EU) 2023/2854. Custom-built data processing services are services of which the majority of main features has been custom-built to accommodate the specific needs of an individual customer or where those data processing services are not offered at broad commercial scale via the service catalogue of the provider. To avoid additional costs and

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administrative burden connected to the need to reopen and renegotiate contracts concluded before or on 12 September 2025, it is necessary to clarify that, with the exception of the obligation to reduce and ultimately remove switching and egress charges, custom-made services provided according to contracts concluded before or on 12 September 2025 should not fall within scope of Chapter VI of Regulation (EU) 2023/2854.

Or. en

Amendment 151

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 18

Text proposed by the Commission

Amendment

(18) *For reasons relating to financial planning and attracting investment, providers of data processing services, especially SMEs and SMCs, may prefer and offer contracts of a fixed duration. It is necessary to clarify that providers of data processing services may include provisions on proportionate early termination penalties in those contracts as long as they do not constitute an obstacle to switching. In addition, providers of data processing services that are SMEs or SMCs are particularly burdened by the need to align existing contracts for the provision of data processing services to Regulation (EU) 2023/2854. It is therefore necessary to establish a specific regime for those providers if they provide data processing services, other than IaaS, based on contracts concluded before or on 12 September 2025. Taking into account the aim of Regulation (EU) 2023/2854 to enable switching between data processing services and given that switching charges,*

deleted

including egress charges, constitute a serious obstacle to switching, the new lighter regimes for data processing services that are custom-made or are provided by SMEs or SMCs should not undermine the gradual withdrawal of those charges. Contractual provisions running contrary to that objective should be considered to never have existed, if they are included in contractual agreements on the provision of services falling within the scope of those two new specific regimes.

Or. en

Amendment 152

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 21

Text proposed by the Commission

Amendment

(21) Both Directive (EU) 2019/1024 and Chapter II of Regulation (EU) 2022/868 regulate the re-use of public sector information for innovation purposes. The interplay of the two sets of rules has created legal uncertainty, mainly for public sector bodies. An alignment of the rules in one legal instrument is therefore necessary to bring further legal coherence and certainty. *deleted*

Or. en

Amendment 153

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 24

Text proposed by the Commission

Amendment

(24) The existing rules should be streamlined to enhance clarity and consistency. Nevertheless, the two reuse regimes should remain distinct and their respective scope of application should continue to depend on the characteristics of the data or documents and the context of their reuse. Public sector bodies should apply the open data regime whenever possible. Only where they determine that data or a document contains information corresponding to certain categories of protected data should they limit its public availability and consider making it available for reuse as protected data.

deleted

Or. en

Amendment 154

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 25

Text proposed by the Commission

Amendment

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴

and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation (EU) 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

Such charges and fees may apply exceptionally pertaining to open data, in conformity with the provisions of Directive (EU) 2019/1024 on open data and the re-use of public sector information establishing the principle of open licences for such data and content, to be freely accessed, used, modified and shared by anyone for any purpose, and which rely on open data formats;

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

Or. en

Justification

Wording from the Open Data Directive (ODD), recital 44.

Amendment 155
Sophia Kircher

Proposal for a regulation
Recital 25

Text proposed by the Commission

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under **Regulation € 2022/1925**, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L

Amendment

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under **Regulation 2022/1925**, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L

124, 20.5.2003, p. 36, ELI:
<http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI:
<http://data.europa.eu/eli/reg/2022/1925/oj>).

124, 20.5.2003, p. 36, ELI:
<http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI:
<http://data.europa.eu/eli/reg/2022/1925/oj>).

Or. en

Amendment 156 **Piotr Müller**

Proposal for a regulation **Recital 26**

Text proposed by the Commission

(26) In the spirit of fostering innovation and maintaining fair competition within the Union's digital market, it is imperative to ensure that access to and reuse of public sector data benefit a wide range of market participants and do not inadvertently reinforce existing dominant positions. Very large enterprises, and in particular undertakings designated as gatekeepers under Regulation (EU) 2022/1925, hold significant power and influence over the internal market. To prevent such entities from leveraging their substantial means to the detriment of fair competition and innovation, public sector bodies should be able to set out higher charges and fees for the re-use of open government data and protected data. Such higher charges and fees should be proportionate and should be based on objective criteria, taking into consideration the economic power and the entity's ability to acquire data. This measure serves to safeguard opportunities for smaller businesses and new market

Amendment

(26) In the spirit of fostering innovation and maintaining fair competition within the Union's digital market, it is imperative to ensure that access to and reuse of public sector data benefit a wide range of market participants and do not inadvertently reinforce existing dominant positions. Very large enterprises, and in particular undertakings designated as gatekeepers under Regulation (EU) 2022/1925, hold significant power and influence over the internal market. To prevent such entities from leveraging their substantial means to the detriment of fair competition and innovation, public sector bodies should be able to set out higher charges and fees for the re-use of open government data and protected data. Such higher charges and fees should be proportionate ***predictable*** and should be based on objective ***and transparent*** criteria, taking into consideration the economic power and the entity's ability to acquire data. This measure serves to safeguard opportunities for smaller businesses and new market

entrants to innovate and compete in the digital economy.

entrants to innovate and compete in the digital economy.

Or. en

Amendment 157

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 27

Text proposed by the Commission

(27) This Regulation proposes a series of targeted amendments to Regulation (EU) 2016/679 for clarification and simplification, whilst **preserving** the same level of data protection. Article 4 of Regulation (EU) 2016/679 provides that personal data is any information relating to an identified or identifiable natural person. ***In order to determine whether a natural person is identifiable, account should be taken of all the means reasonably likely to be used to identify the natural person directly or indirectly. Taking into account the case-law of the Court of Justice of the European Union concerning the definition of personal data, it is necessary to provide further clarity on when a natural person should be considered to be identifiable. The existence of additional information enabling the data subject to be identified does not, in itself, mean that pseudonymised data must be regarded as constituting, in all cases and for every person or entity, personal data for the purposes of the application of Regulation (EU) 2016/679. In particular, it should be clarified that information is not to be considered personal data for a given entity where that entity does not have means reasonably likely to be used to identify the natural person to whom the information relates. A potential subsequent transmission of that***

Amendment

(27) This Regulation proposes a series of targeted amendments to Regulation (EU) 2016/679 for clarification and simplification, whilst **seeking to preserve** the same **or higher** level of data protection. Article 4 of Regulation (EU) 2016/679 provides that personal data is any information relating to an identified or identifiable natural person **and** should be **interpreted in line with** the case-law of the Court of Justice of the European Union concerning the definition of personal data **and** to provide further clarity on when a natural person should be considered to be identifiable.

information to third parties who have means reasonably allowing them to identify the natural person to whom the information relates, such as cross-checking with other data at their disposal, renders that information personal data only for those third parties who have such means at their disposal. An entity for which the information is not personal data, in principle, does not fall within the scope of application of Regulation (EU) 2016/679. In this respect the Court of Justice of the European Union has held that a means of identifying the data subject is not reasonably likely to be used where the risk of identification appears in reality to be insignificant, in that the identification of that data subject is prohibited by law or impossible in practice, for example because it would involve a disproportionate effort in terms of time, cost and labour. An example of a prohibition against reidentification can be found in the obligations of health data users in Article 61(3) of Regulation (EU) 2025/327 of the European Parliament and of the Council¹⁵. The Commission, together with the European Data Protection Board, should support controllers in the application of this updated definition by stipulating technical criteria in an implementing act.

¹⁵ Regulation (EU) 2025/327 of the European Parliament and of the Council of 11 February 2025 on the European Health Data Space and amending Directive 2011/24/EU and Regulation (EU) 2024/2847 (OJ L, 2025/327, 5.3.2025, ELI: <http://data.europa.eu/eli/reg/2025/327/oj>)

Or. en

Amendment 158
David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation
Recital 28

Text proposed by the Commission

(28) In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of principles of reliability, honesty, respect and accountability (verifiability).

Amendment

deleted

Or. en

Amendment 159
Arba Kokalari

Proposal for a regulation
Recital 28

Text proposed by the Commission

(28) In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of

Amendment

(28) In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium-sized undertakings, (Article 179(2) TFEU) and should be always of a of high quality and should adhere to the principles of

principles of reliability, honesty, respect and accountability (verifiability).

principles of reliability, honesty, respect and accountability (verifiability). ***This does not exclude scientific research activities that further commercial interests.***

Or. en

Amendment 160

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 29

Text proposed by the Commission

Amendment

(29) It should be reiterated that further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes should be considered to be compatible lawful processing operations. In such cases it is not necessary to ascertain on the basis of Article 6(4) of this Regulation whether the purpose of the further processing is compatible with the purpose for which the personal data are initially collected.

deleted

Or. en

Amendment 161

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 30

Text proposed by the Commission

Amendment

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such

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as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 162
Arba Kokalari

Proposal for a regulation
Recital 30

Text proposed by the Commission

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be

Amendment

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. ***To develop and use reliable AI systems, it is necessary to improve***

carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

access to qualitative data in Europe. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 163

Piotr Müller

Proposal for a regulation

Recital 30

Text proposed by the Commission

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI

Amendment

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models, ***including general-purpose AI models as defined in Article 3, point (63), of Regulation (EU) 2024/1689***, rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the

in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 164

Sophia Kircher

Proposal for a regulation

Recital 30

Text proposed by the Commission

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article

Amendment

(30) Trustworthy AI is key in providing for economic growth, ***enhancing the Union's long-term competitiveness, achieving strategic autonomy*** and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by

6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 165

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 31

Text proposed by the Commission

Amendment

(31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data, respecting technical indications embedded in a service limiting the use of data for AI

deleted

development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.

Or. en

Amendment 166
Piotr Müller

Proposal for a regulation
Recital 31

Text proposed by the Commission

(31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as *providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data*, respecting technical indications embedded in a service limiting the use of data for AI

Amendment

(31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as *ensuring transparency towards data subjects in accordance with Articles 13 and 14, giving full effect to the right to object in accordance with Article 21*, respecting technical indications embedded in a service limiting the use of

development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.

data for AI development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.

Or. en

Amendment 167

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 32

Text proposed by the Commission

Amendment

(32) The processing of personal data for scientific research purposes and the application of the GDPR's provisions on scientific research are conditional on the adoption of appropriate safeguards for the rights and freedoms of data subjects, pursuant to Article 89(1) GDPR. To that end, the GDPR balances the right to protection of personal data, pursuant to Article 8 CFREU, with the freedom of science, pursuant to Article 13 CFREU. The processing of personal data for the purpose of scientific research therefore pursues a legitimate interest within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, provided that such research is not contrary to Union or Member State law. This is without prejudice to the obligation of the controller to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

deleted

Or. en

Amendment 168
Sophia Kircher

Proposal for a regulation
Recital 32

Text proposed by the Commission

(32) The processing of personal data for scientific research purposes and the application of the GDPR's provisions on scientific research are conditional on the adoption of appropriate safeguards for the rights and freedoms of data subjects, pursuant to Article 89(1) GDPR. To that end, the GDPR ***balances*** the right to protection of personal data, pursuant to Article 8 CFREU, with the freedom of science, pursuant to Article 13 CFREU. The processing of personal data for the purpose of scientific research therefore pursues a legitimate interest within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, provided that such research is not contrary to Union or Member State law. This is without prejudice to the obligation of the controller to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Amendment

(32) The processing of personal data for scientific research purposes and the application of the GDPR's provisions on scientific research are conditional on the adoption of appropriate safeguards for the rights and freedoms of data subjects, pursuant to Article 89(1) GDPR. To that end, the GDPR ***seeks to ensure a proportionate balance between*** the right to protection of personal data, pursuant to Article 8 CFREU, with the freedom of science, pursuant to Article 13 CFREU. The processing of personal data for the purpose of scientific research therefore pursues a legitimate interest within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, provided that such research is not contrary to Union or Member State law. This is without prejudice to the obligation of the controller to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

Or. en

Amendment 169
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Recital 33

Text proposed by the Commission

(33) ***The development of certain AI systems and AI models may involve the collection of large amounts of data,***

Amendment

deleted

including personal data and special categories thereof. Special categories of personal data may residually exist in the training, testing or validation data sets or be retained in the AI system or the AI model, although the special categories of personal data are not necessary for the purpose of the processing. In order not to disproportionately hinder the development and operation of AI and taking into account the capabilities of the controller to identify and remove special categories of personal data, derogating from the prohibition on processing special categories of personal data under Article 9(2) of Regulation (EU) 2016/679 should be allowed. The derogation should only apply where the controller has implemented appropriate technical and organisational measures in an effective manner to avoid the processing of those data, takes the appropriate measures during the entire lifecycle of an AI system or AI model and, once it identifies such data, effectively remove them. If removal would require disproportionate effort, notably where the removal of special categories of data memorised in the AI system or AI model would require re-engineering the AI system or AI model, the controller should effectively protect such data from being used to infer outputs, being disclosed or otherwise made available to third parties. This derogation should not apply where the processing of special categories of personal data is necessary for the purpose of the processing. In this case, the controller should rely on the derogations pursuant to Article 9(2)(a) – (j) of Regulation (EU) 2016/679.

Or. en

Amendment 170
Kateřina Konečná

Proposal for a regulation
Recital 33

Text proposed by the Commission

Amendment

(33) *The development of certain AI systems and AI models may involve the collection of large amounts of data, including personal data and special categories thereof. Special categories of personal data may residually exist in the training, testing or validation data sets or be retained in the AI system or the AI model, although the special categories of personal data are not necessary for the purpose of the processing. In order not to disproportionately hinder the development and operation of AI and taking into account the capabilities of the controller to identify and remove special categories of personal data, derogating from the prohibition on processing special categories of personal data under Article 9(2) of Regulation (EU) 2016/679 should be allowed. The derogation should only apply where the controller has implemented appropriate technical and organisational measures in an effective manner to avoid the processing of those data, takes the appropriate measures during the entire lifecycle of an AI system or AI model and, once it identifies such data, effectively remove them. If removal would require disproportionate effort, notably where the removal of special categories of data memorised in the AI system or AI model would require re-engineering the AI system or AI model, the controller should effectively protect such data from being used to infer outputs, being disclosed or otherwise made available to third parties. This derogation should not apply where the processing of special categories of personal data is necessary for the purpose of the processing. In this case, the controller should rely on the derogations pursuant to Article 9(2)(a) – (j) of Regulation (EU) 2016/679.* ***deleted***

Amendment 171

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 35

Text proposed by the Commission

Amendment

(35) Article 15 of Regulation (EU) 2016/679 provides data subjects with the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and certain additional information. The right of access should allow the data subject to be aware of, and to verify, the lawfulness of the processing and enable him or her to exercise his or her other rights under Regulation (EU) 2016/679. By contrast, it should be clarified in Article 12 of the Regulation that the right of access, which is from the outset favourable to data subjects, should not be abused in the sense that the data subjects abuse them for purposes other than the protection of their data. For example, such an abuse of the right of access would arise where the data subject intends to cause the controller to refuse an access request, in order to subsequently demand the payment of compensation, potentially under the threat of bringing a claim for damages. Other examples of abuse include situations where data subjects make excessive use of the right of access with the only intent of causing damage or harm to the controller or when an individual makes a request, but at the same time offers to withdraw it in return for some form of benefit from the controller. Moreover, in order to keep their burden to a reasonable extent,

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controllers should bear a lower burden of proof regarding the excessive character of a request than regarding the manifestly unfounded character of a request. The reason is that the manifestly unfounded character of a request depends on facts that lie principally within the controller's sphere of responsibility, whereas the excessive character of a request concerns the possibly abusive conduct of a data subject, which lies primarily outside the controller's sphere of influence, and therefore the controller may be able to prove such abuse only to a reasonable level. In any event, while requesting access under Article 15 of Regulation (EU) 2016/679 the data subject should be as specific as possible. Overly broad and undifferentiated requests should also be regarded as excessive.

Or. en

Amendment 172

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 37

Text proposed by the Commission

Amendment

(37) Where the processing takes place for the purpose of scientific research and the provision of information to the data subject proves to be impossible or would involve a disproportionate effort it should not be necessary to provide the information provided for under Article 13 of this Regulation. The controller should make reasonable efforts to acquire contact details if they are readily available and acquisition would not require a disproportionate effort. The provision of the information would involve a disproportionate effort in particular where the controller at the time of

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collection of the personal data did not know or anticipate that it would process personal data for scientific research purposes at a later stage, in which case it may not have easily available contact details of the data subjects. In such situations the controller should inform data subjects indirectly, such as by making the information publicly available. The provision of such information should ensure that as many data subjects concerned as possible are reached. Relevant means to make the information publicly available should be determined depending on the context of the research project and the data subjects involved.

Or. en

Amendment 173
Sophia Kircher

Proposal for a regulation
Recital 38

Text proposed by the Commission

(38) Article 22 of Regulation (EU) 2016/679 provides for rules governing the processing of personal data when the data controller makes decisions which have legal effects or similarly significant effects on the data subject, based solely on automated processing. In order to provide greater legal certainty, it should be clarified that decisions based solely on automated processing are allowed when specific conditions are met, as set out in Regulation (EU) 2016/679. It should also be clarified that when assessing whether a decision is necessary for entering into, or performance of, a contract between the data subject and a data controller, as set out in Article 22(2)(a) of Regulation (EU) 2016/679, it should not be required that the decision could be taken only by solely automated

Amendment

(38) Article 22 of Regulation (EU) 2016/679 provides for rules governing the processing of personal data when the data controller makes decisions which have legal effects or similarly significant effects on the data subject, based solely on automated processing. In order to provide greater legal certainty, it should be clarified that decisions based solely on automated processing are allowed when specific conditions are met, as set out in Regulation (EU) 2016/679. It should also be clarified that when assessing whether a decision is necessary for entering into, or performance of, a contract between the data subject and a data controller, as set out in Article 22(2)(a) of Regulation (EU) 2016/679, it should not be required that the decision could be taken only by solely automated

processing. This means that the fact that the decision could also be taken by a human does not prevent the controller from taking the decision by solely automated processing. When several equally effective automated processing solutions exist, the controller should use the less intrusive one.

processing. This means that the fact that the decision could also be taken by a human does not prevent the controller from taking the decision by solely automated processing. When several equally effective automated processing solutions exist, the controller should use the less intrusive one.
The requirement to provide “meaningful information about the logic involved” does not oblige controllers to disclose internal algorithms, proprietary logic, or commercially sensitive business knowledge.

Or. en

Amendment 174

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 39

Text proposed by the Commission

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation (EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate

Amendment

(39) In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should prepare a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a

its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should prepare a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches.

natural person. The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches. ***Adapting the threshold for notifications should not have an affect on the controller's obligations under Regulation (EU) 2016/679 to carry out an individual risk assessment and to maintain complete documentation of personal data breaches in accordance with Article 33(5) and Article 30 of that Regulation. The common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedom of a natural person remains valid in order to determine when communicating the data breaches to the data subject, in accordance with Article 34.***

Or. en

Amendment 175

Sophia Kircher

Proposal for a regulation

Recital 39

Text proposed by the Commission

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation

Amendment

(39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation

(EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board ***should prepare*** a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. ***The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption.*** In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches.

(EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board ***establish and make public*** a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated ***where necessary.*** ***The Commission may adopt, by means of an implementing act, the common template as established by the Board as well as its updates,*** where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches.

Or. en

Amendment 176

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation
Recital 44 – paragraph 1

Text proposed by the Commission

The storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment **and the subsequent processing of such data** should be regulated under a single legal framework, namely Regulation (EU) 2016/679, where the subscriber of the electronic communications service or the user of the terminal equipment is a natural person. The amendments presented in this Regulation continue to offer the highest levels of protection for personal data, while simplifying the experiences of data subjects in exerting their rights and expressing their choices online. The amendments concern in particular storage of information in that equipment, accessing or otherwise collecting information from that equipment that entails the processing of personal data through cookies or similar technologies to gain information from the terminal equipment. The relevant rules should also apply regardless of whether the terminal equipment is owned by the natural person or by another legal or natural person.

Amendment

The introduction of Article 88a in the GDPR should continue to offer the highest levels of protection, in particular consumer protection and privacy, while simplifying the experiences of consumers in exerting their rights and expressing their choices online. This article should be seen as strengthening Article 5 of Directive 2002/58/EC on privacy and electronic communications ('ePrivacy Directive'), last revised in 2009, by providing specific rules in relation to processing of personal data in the context of electronic communication services. The amendments concern in particular access to and storage of personal data in the terminal equipment, accessing or otherwise collecting personal data from that equipment through cookies or similar technologies to gain information from the terminal equipment. As this access and storage constitute by itself an interference with the private sphere of a consumers as protected by Article 7 and 8 of the Charter of Fundamental Rights, it begs the question whether the information qualifies as personal data. The storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment should **therefore continue to be allowed only on the basis of consent and be subject to clear rules able to guarantee a high level of protection of consumers while safeguarding the functioning of the internal market. Rules governing the storing of information in terminal equipment and access to such information protect the confidentiality of communications and the integrity of user devices. These protections apply independently of whether the information accessed constitutes personal data and** apply regardless of whether the

information accessed constitutes personal data. With a view of providing legal clarity it is necessary to define a limitative list of purposes, strictly defined and necessary, for which the processing should be permitted without consent. These exemptions should be interpreted strictly.

Non-personalised advertising is a form of advertising that provides the highest level of consumer protection as it minimizes the collection of consumer data while still ensuring the provision of advertising on the internal market and the establishment of new businesses models in this sector. In the context of Article 88a (3) (d) (a) (new) it shall not involve the retention, storage, reuse or linking of any data generated in connection with such interaction, nor the processing, inference or use of any data relating to the consumer's location whether precise or approximate, including where such location data is derived, inferred or processed in aggregated anonymized form. Contextual advertising as defined in Article 4 (b) (xx) and in the context of Article 88a (3) (d) (a) (new) shall not involve the retention, storage, reuse or linking of any data generated in connection with such interaction, nor the processing, inference or use of any data relating to the consumer's location whether precise or approximate, including where such location data is derived, inferred or processed in aggregated anonymized form. If a controller invokes the exception of Article 88a (3) (d) (a) (new) , the controller will not be able to engage in any other advertising activities other than contextual advertising as defined in Article (4) (b) (xx), including, but not limited, personalised and targeted advertising activities as defined in the EDPB Guidelines 8/2020 on the targeting of social media use.

Or. en

Amendment 177

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 44 – paragraph 2

Text proposed by the Commission

Amendment

The storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment should continue to be allowed only on the basis of consent. Similar to the approach in Directive 2002/58/EC, this requirement should not preclude storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person, when that is based on Union or Member State law within the meaning of Article 6 of Regulation (EU) 2016/679 and if it fulfils all conditions of lawfulness laid down in that provision, and is done for the objectives laid down in Article 23(1) of Regulation (EU) 2016/679.

deleted

Or. en

Amendment 178

Sophia Kircher

Proposal for a regulation

Recital 44 – paragraph 2

Text proposed by the Commission

Amendment

The storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment should continue to be allowed only on the basis of consent. Similar to the approach in Directive 2002/58/EC, this requirement should not preclude storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person, when that is based on

The storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment should continue to be allowed only on the basis of consent. Similar to the approach in Directive 2002/58/EC, this requirement should not preclude storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person, when that is based on

Union *or Member State* law within the meaning of Article 6 of Regulation (EU) 2016/679 and if it fulfils all conditions of lawfulness laid down in that provision, and is done for the objectives laid down in Article 23(1) of Regulation (EU) 2016/679.

Union law within the meaning of Article 6 of Regulation (EU) 2016/679 and if it fulfils all conditions of lawfulness laid down in that provision, and is done for the objectives laid down in Article 23(1) of Regulation (EU) 2016/679.

Or. en

Amendment 179

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 44 – paragraph 3

Text proposed by the Commission

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.

Amendment

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service ***explicitly*** requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is ***strictly*** necessary ***and proportionate*** for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.
Controllers wishing to collect aggregated information of consumers should anonymise such information instantly and may mandate a processor to carry out the processing, provided that the processor will exclusively process the data for the use of the controller.

No subsequent processing of personal data for other purposes than those defined in the limitative list should take place.

Or. en

Amendment 180
Sabine Verheyen

Proposal for a regulation
Recital 44 – paragraph 3

Text proposed by the Commission

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.

Amendment

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor *or joint controller*, such as a market research company *and Joint Industry Controller*, to carry out the processing *jointly or* on its behalf.

Or. en

Amendment 181
Christian Doleschal

Proposal for a regulation
Recital 44 – paragraph 3

Text proposed by the Commission

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.

Amendment

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor *or joint controller*, such as a market research company *and Joint Industry Committee*, to carry out the processing on its behalf.

Or. en

Amendment 182

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 45

Text proposed by the Commission

(45) Data subjects that have refused a request for consent are often confronted with a new request to give consent each time they visit the same controller's online service again. This may have detrimental effects to the data subjects which may consent just in order to avoid repeating requests. The controller should therefore be obliged to respect the data subject's choices to refuse a request for consent for at least a certain period.

Amendment

(45) Consumers should have the opportunity to refuse to have a cookie or similar device stored on their terminal equipment. This is particularly important where a user other than the original user have access to the terminal equipment and thereby to any data containing privacy-sensitive information stored on such equipment. Information and the right to refuse may be offered once for the use of various devices to be installed on the user's terminal equipment during the

same connection and also covering any further use that may be made of those devices during subsequent connections. The methods for giving information, offering a right to refuse or requesting consent should be made as user-friendly as possible. Access to specific website content may still be made conditional on the well-informed acceptance of a cookie or similar device, if it is used for a legitimate purpose. When a user has refused or withdrawn consent, electronic communications service providers and third parties may not seek the user's consent again until one year has elapsed from the date of the user's decision.

Or. en

Amendment 183

Piotr Müller

Proposal for a regulation

Recital 45 a (new)

Text proposed by the Commission

Amendment

(45a) In the longer term, privacy-enhancing technologies may offer a more effective and more user-friendly alternative to current consent-management mechanisms. The Commission should, in cooperation with the European Data Protection Board and ENISA, issue guidance on the use and recognition of such technologies, without imposing prescriptive obligations before the necessary technical and economic assessment has been carried out.

Or. en

Amendment 184

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation
Recital 46

Text proposed by the Commission

(46) Data subjects should have the possibility to rely on automated and machine-readable indications of their choice to consent or refuse a consent request or object to the processing of data. Such ***means should follow the state of the art. They*** can be implemented in the settings of a web browser or in the EU Digital Identity Wallet as set out by Regulation (EU) 914/2014, or any other adequate means. Rules set out in this Regulation should support the emergence of market-driven solutions with appropriate interfaces. The controller should be obliged to respect automated and machine-readable indications of data subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, media service providers should not be obliged to respect the machine-readable indications of data subject's choices. The obligation for providers of web browsers to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects.

Amendment

(46) Data subjects should have the possibility to rely on automated and machine-readable indications of their choice to ***express*** consent or refuse ***and withdraw*** a consent request or object to the processing of data. Such ***signals shall constitute legally valid expression of the data subject's choice. Controllers shall recognise and respect such signals.*** ***Automated signals*** can be implemented in the settings of a web browser or in the EU Digital Identity Wallet as set out by Regulation (EU) 914/2014, or any other adequate means. ***The legal interpretation, scope and impact of such automated signals should be set out in EU legislation. While technical standards may support interoperability, they should not modify the legal effect of signals or introduce additional conditions for their validity.*** Rules set out in this Regulation should support the emergence of market-driven solutions with appropriate interfaces. The controller should be obliged to respect automated and machine-readable indications of data subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, media service providers should not be obliged to respect the machine-readable indications of data subject's choices. The obligation for providers of web browsers to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects.

Or. en

Amendment 185
Sophia Kircher

Proposal for a regulation
Recital 46

Text proposed by the Commission

(46) Data subjects should have the possibility to rely on automated and machine-readable indications of their choice to consent or refuse a consent request or object to the processing of data. Such means should follow the state of the art. They can be implemented in the settings of a web browser or in the EU Digital Identity Wallet as set out by Regulation (EU) 914/2014, or any other adequate means. Rules set out in this Regulation should support the emergence of market-driven solutions with appropriate interfaces. The controller should be obliged to respect automated and machine-readable indications of data subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, media service providers should not be obliged to respect the machine-readable indications of data subject's choices. The obligation for providers of web browsers to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects.

Amendment

(46) Data subjects should have the possibility to rely on automated and machine-readable indications of their choice to consent or refuse a consent request or object to the processing of data. Such means should follow the state of the art. They can be implemented in the settings of a web browser or in the EU Digital Identity Wallet as set out by Regulation (EU) 914/2014, or any other adequate means. Rules set out in this Regulation should support the emergence of market-driven solutions with appropriate interfaces. The controller should be obliged to respect automated and machine-readable indications of data subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, media service providers should not be obliged to respect the machine-readable indications of data subject's choices. The obligation for providers of web browsers to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects. ***To support media sustainability in Europe, Media Service Providers can ask for consent or establish necessary conditions for other legal bases for third parties as long as that is done for data processing required to support the functioning or funding of Media Service Providers and is conducted exclusively on their properties.***

Or. en

Amendment 186
Piotr Müller

Proposal for a regulation
Recital 47

Text proposed by the Commission

(47) Directive 2002/58/EC on privacy and electronic communications ‘ePrivacy Directive’), last revised in 2009, provides a framework for the protection of the right to privacy, including the confidentiality of communications. It also specifies Regulation (EU) 2016/679 in relation to processing of personal data in the context of electronic communication services. It protects the privacy and the integrity of user’s or subscriber’s terminal equipment used for such communications. The current provision of Article 5(3) of Directive 2002/58/EC should ***remain applicable insofar as the subscriber or user is not a natural person, and the information stored or accessed does not constitute or lead to the processing of personal data.***

Amendment

(47) Directive 2002/58/EC on privacy and electronic communications ‘ePrivacy Directive’), last revised in 2009, provides a framework for the protection of the right to privacy, including the confidentiality of communications. It also specifies Regulation (EU) 2016/679 in relation to processing of personal data in the context of electronic communication services. It protects the privacy and the integrity of user’s or subscriber’s terminal equipment used for such communications. The current provision of Article 5(3) of Directive 2002/58/EC should ***be amended in order to ensure a simplified regime for cookies and similar technologies centralised under the GDPR.***

Or. en

Amendment 187
Sophia Kircher

Proposal for a regulation
Recital 49

Text proposed by the Commission

(49) Several horizontal or sectorial Union legal acts require the notification of the same event to different authorities using different technical means and channels. The single-entry point for incident reporting should allow entities to fulfil reporting obligations under Directive (EU) 2022/2555, Regulation (EU) 2016/679, Regulation (EU) 2022/2554, Regulation (EU) No 910/2014 and

Amendment

(49) Several horizontal or sectorial Union legal acts require the notification of the same event to different authorities using different technical means and channels. The single-entry point for incident reporting should allow entities to fulfil reporting obligations under Directive (EU) 2022/2555, Regulation (EU) 2016/679, Regulation (EU) 2022/2554, Regulation (EU) No 910/2014 and

Directive (EU) 2022/2557 by submitting notifications to a single interface. Furthermore, the single-entry point should give a possibility for entities to retrieve information that they have previously submitted using the single-entry point, thereby helping entities to keep track of their compliance with reporting obligations in connection with specific incidents.

Directive (EU) 2022/2557 by submitting notifications to a single interface. Furthermore, the single-entry point should give a possibility for entities to retrieve information that they have previously submitted using the single-entry point, thereby helping entities to keep track of their compliance with reporting obligations in connection with specific incidents. ***In implementing the single-entry point, due account should be taken of the ongoing implementation of Directive (EU) 2022/2555 in order to avoid the creation of overlapping or duplicative reporting obligations.***

Or. en

Amendment 188
Maria Grapini

Proposal for a regulation
Recital 57 a (new)

Text proposed by the Commission

Amendment

(57a) To ensure a balanced legal framework for the data economy and protect the competitiveness of businesses, it is necessary to exclude the B2B sector from the scope of Regulation (EU) 2023/2854 or, at least, restore contractual freedom in the B2B sector, and to eliminate the obligation to transfer product data collected by manufacturers to third parties.

Or. ro

Amendment 189
Sophia Kircher

Proposal for a regulation
Recital 59

(59) Regulation (EU) 2019/1150 **deleted**
establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until the original acts are amended.

Or. en

Amendment 190

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Recital 59

Text proposed by the Commission

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, ***and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article***

Amendment

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification ***and streamlining*** of Union legislation in the field of online intermediation services and online platforms, ***the Commission should issue guidance, following a thorough assessment under the Digital Fitness Check on how overlaps can be avoided and inconsistency between the different legal frameworks can be addressed. Under no circumstance*** should such measures lead to deregulation of existing protections under EU law. ***Nonetheless, streamlined enforcement of these legal instruments is key and remains a challenge. Hence, consistency and centralisation of related enforcement measures should be subject to urgent evaluation, in order to guarantee legal security, and duly serve the goal of reducing administrative burden for the regulators and for economic actors.***

15 ensuring enforcement, will temporarily remain in application until the original acts are amended.

Or. en

Amendment 191
Arba Kokalari

Proposal for a regulation
Recital 59

Text proposed by the Commission

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be ***repealed***. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, ***the*** provisions on restrictions and suspensions in Article 4, ***as well as*** on the

Amendment

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, ***several provisions of*** Regulation (EU) 2019/1050 should be ***deleted***. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty ***and for purposes of keeping a necessary level of protection for business users,***

internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 ***that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until the original acts are amended.***

selected definitions in Article 2, provisions on ***terms of conditions in Article 3, restrictions and suspensions in Article 4, on ranking in Article 5, and on differentiated treatment in Article***, on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 ***and provisions in Article 15 ensuring enforcement and in Article 18(1) mandating the Commission to evaluate that Regulation are maintained.***

Or. en

Justification

Regulation (EU) 2019/1150 fills a gap that is not fully covered by Regulation (EU) 2022/2065 or Regulation (EU) 2022/1925. To avoid overlaps while keeping safeguards for SMEs that rely on online intermediaries, some provisions in Regulation (EU) 2019/1150 should be maintained.

Amendment 192

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 1 – point a

Regulation (EU) 2023/2854

Article 1 – paragraph 1 – point ea

Text proposed by the Commission

(ea) ***voluntary*** registration of data intermediation services;

Amendment

(ea) registration of data intermediation services;

Or. en

Amendment 193

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 1 – point a

Regulation (EU) 2023/2854

Article 1 – paragraph 1 – point ea a (new)

Text proposed by the Commission

Amendment

***(eaa) introducing requirements for data
intermediation services***

Or. en

Amendment 194
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1 – paragraph 1 – point ea b (new)

Text proposed by the Commission

Amendment

***(eab) voluntary registration of providers
of data processing services on which the
performance of a function of general
interest or the continuity of an essential
service in the Union depend and which
are exposed to a unilateral suspension,
obstacles to changing supplier or a
transfer to a third country;***

Or. fr

Amendment 195
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1 – paragraph 1 – point ea c (new)

Text proposed by the Commission

Amendment

***(ebb) voluntary registration of providers
of data processing services that process
sensitive data on the basis of a legitimate
interest with a view to researching and
developing innovative solutions and
processes;***

Amendment 196
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1 – paragraph 1 – point ea d (new)

Text proposed by the Commission

Amendment

(ebc) voluntary registration of providers of data processing services that process pseudonymised data using state-of-the-art methods to preserve and reinforce privacy, on the basis of Article 6(1)(f) of Regulation (EU) 2016/679;

Or. fr

Amendment 197
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a
Regulation (EU) 2023/2854
Article 1 – paragraph 1 – point ea e (new)

Text proposed by the Commission

Amendment

(ebd) voluntary registration of providers of data processing services that process high-value datasets or sensitive business secrets;

Or. fr

Amendment 198
Piotr Müller

Proposal for a regulation
Article 1 – paragraph 1 – point 1 – point a a (new)

Regulation (EU) 2023/2854
Article 1 – paragraph 2 – point a a (new)

Text proposed by the Commission

Amendment

(aa) in paragraph 2, point (a) is replaced by the following:

(a) Chapter II applies to data, with the exception of content, concerning the performance, use and environment of connected products and related services; Chapter II shall not apply where both the user and the data holder are enterprises;

Or. en

Justification

Removes purely business-to-business dealings from the mandatory data-access obligations of Chapter II, cutting a broad and costly obligation where no consumer interest is at stake.

Amendment 199

Piotr Müller

Proposal for a regulation

Article 1 – paragraph 1 – point 1 – point b

Regulation (EU) 2023/2854

Article 1 – paragraph 2 – point i a (new)

Text proposed by the Commission

Amendment

(ia) Chapter II shall apply on a voluntary basis to medical devices within the meaning of Regulation (EU) 2017/745, in vitro diagnostic medical devices within the meaning of Regulation (EU) 2017/746, electronic health record systems and related services;

Or. en

Justification

Makes Chapter II voluntary for medical devices and electronic health records, removing a data-sharing mandate that conflicts with patient-safety and certification duties.

Amendment 200
Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 4c

Text proposed by the Commission

Amendment

(4c) ‘access’ means data use, in accordance with specific technical, legal or organisational requirements, without necessarily implying the transmission or downloading of data;

deleted

Or. en

Amendment 201

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 4c

Text proposed by the Commission

Amendment

(4c) ‘access’ means *data use*, in accordance with specific technical, legal or organisational requirements, *without necessarily implying the transmission or downloading of data*;

(4c) ‘access’ means *the act of viewing, retrieving and using data or collected by a connected product, including metadata*, in accordance with specific technical, legal or organisational requirements

Or. en

Amendment 202

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a a (new)

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point a (new)

(aa) ‘data intermediation service’ means a service which aims to establish commercial relationships for the purposes of data sharing between an undetermined number of data subjects and data holders on the one hand and data users on the other, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, excluding at least the following:

(a) services that obtain data from data holders and aggregate, enrich or transform the data for the purpose of adding substantial value to it and license the use of the resulting data to data users, without establishing a commercial relationship between data holders and data users;

(b) services that focus on the intermediation of copyright-protected content;

(c) services that are exclusively used by one data holder in order to enable the use of the data held by that data holder, or that are used by multiple legal persons in a closed group, including supplier or customer relationships or collaborations established by contract, in particular those that have as a main objective to ensure the functionalities of objects and devices connected to the Internet of Things;

(d) data sharing services offered by public sector bodies that do not aim to establish commercial relationships;

Or. en

Amendment 203
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point b

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 13

Text proposed by the Commission

(13) ‘data holder’ means a natural or legal person that has the right or obligation, in accordance with this Regulation, applicable Union law or national legislation adopted in accordance with Union law, to use **or** make available data, including, where contractually agreed, product data or related service data, which it has retrieved or generated during the provision of a related service;

Amendment

(13) ‘data holder’ means a natural or legal person that has the right or obligation, in accordance with this Regulation, applicable Union law or national legislation adopted in accordance with Union law, to use **and** make available data, including, where contractually agreed, product data or related service data, which it has retrieved or generated during the provision of a related service;

Or. en

Amendment 204

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point b a (new)

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 22

Present text

(22) ‘placing on the market’ means the first making available of a connected product on the Union market;

Amendment

"(22) ‘placing on the market’ means the first making available of a connected product on the Union market, **meaning that if at least one individual unit has been lawfully placed on the market or put into service before the date specified in Article 50, other individual units of the same type and model of connected products are subject to the grace period provided in Article 50 and thus may continue to be placed on the market, made available or put into service on the Union market without any additional obligations, requirements or the need for additional certification.**"

Or. en

Amendment 205
Arba Kokalari

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point b a (new)

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 5

Present text

(5) ‘connected product’ means an item ***that obtains, generates or collects*** data concerning its use or environment and that is able to communicate product data via an electronic communications service, physical connection or on-device access, and whose primary function is not the storing, processing or transmission of data on behalf of any party other than the user;

Amendment

(ba) Point (5) is replaced by the following:

"(5) ‘connected product’ means an item ***whose primary function is to obtain, generate or collect*** data concerning its use or environment and that is able to communicate product data via an electronic communications service, physical connection or on-device access, and whose primary function is not the storing, processing or transmission of data on behalf of any party other than the user;"

Or. en

(Regulation (EU) 2023/2854)

Amendment 206
Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point b b (new)

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 5

Present text

‘connected product’ means an item ***that obtains, generates or collects*** data concerning its use or environment and that is able to communicate product data via an electronic communications service, physical connection or on-device access,

Amendment

"‘connected product’ means an item ***whose primary function is obtaining, generating, or collecting*** data concerning its use or environment and that is able to communicate product data via an electronic communications service, physical

and whose primary function is **not** the storing, processing or transmission of data **on behalf of any party** other than **the user**;

connection or on-device access, **excluding any item** whose primary function is the storing, processing or transmission of data other than **data concerning its use or environment**;"

Or. en

(<https://eur-lex.europa.eu/eli/reg/2023/2854/oj/eng>)

Amendment 207

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d – introductory part

Text proposed by the Commission

Amendment

(d) the following **points (38a) and (38b) are** inserted:

(d) the following **point (38b) is** inserted:

Or. en

Amendment 208

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – paragraph 1 – point 38a

Text proposed by the Commission

Amendment

(38a) ‘data intermediation service’ means a service which aims to establish relationships of an economic character for the purposes of data sharing between an undetermined number of data subjects or data holders and data users, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, and which:

deleted

(1) do not have as their main purpose the intermediation of copyright-protected content;

(2) are not jointly procured by several legal persons for exclusive use among them;

Or. en

Amendment 209

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 38b

Text proposed by the Commission

(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond compensation related to the costs that they incur where they make their data available for objectives of general interest as provided for in national law, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

Amendment

(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond *fair* compensation related to the costs that they incur where they make their data available for objectives of general interest as provided for in national *and Union* law, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

Or. en

Amendment 210

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 38b a (new)

Text proposed by the Commission

Amendment

(38ba) “Data altruism organisation” means a legal person operating on a not-for-profit basis and independently from any for-profit entity, which carries out activities enabling the voluntary sharing and use of personal or non-personal data for objectives of general interest.

Or. en

Justification

Due to the loss of certain provisions on data altruism organisations an explicit definition of data altruism organisations is suggested.

Amendment 211

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d a (new)

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 29

Present text

Amendment

‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared

"‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared in accordance with the relevant procedures

in accordance with the relevant procedures
under Union or national law;

under Union or national law, *for the purposes of this Regulation, “responding to a public emergency” refers to immediate actions necessary to address and manage the emergency while it is ongoing, whereas “mitigating or supporting the recovery from a public emergency” refers to immediate actions taken after or once the immediate phase of the emergency has passed, aimed at limiting its consequences and restoring normal conditions within a timely manner;*

Or. en

(<https://eur-lex.europa.eu/eli/reg/2023/2854/oj/eng>)

Amendment 212
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point e
Regulation (EU) 2023/2854
Article 2 – paragraph 1– point 45 a (new)

Text proposed by the Commission

Amendment

(45a) ‘very large enterprise’ means an enterprise that is neither a start-up nor a small or medium-sized enterprise nor a small mid-cap enterprise within the meaning of the present Regulation, and which has significant economic power on one or more digital economy markets in view of its designation as a ‘gatekeeper’ under Article 3 of Regulation (EU) 2022/1925, or in view of the fact that it provides one or more core platform services within the meaning of that regulation; its annual global turnover and its market capitalisation or its equivalent fair market value; its capacity to access large volumes of data, to accumulate or aggregate them across different services or jurisdictions and to monetise them; the extent to which users established in the

Union depend on its services and the existence of obstacles preventing them from switching to other providers;

Or. fr

Amendment 213

Virginie Joron

Proposal for a regulation

Article 1– paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 50

Text proposed by the Commission

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings and results;

Amendment

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities, ***in accordance with Article 4(38) of Regulation (EU) 2026/679***, and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings and results. ***Research data do not include data collected or produced in the context of processing with the principal aim of observing, establishing the profile or influencing the behaviour of natural persons for commercial purposes, in particular for behavioural advertising or the commercial targeting of individuals even where scientific methods are used;***

Or. fr

Amendment 214

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 50

Text proposed by the Commission

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings and results;

Amendment

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings and results; ***it also includes research information, such as abstracts, citations, metadata and other information used to understand and assess research;***

Or. en

Amendment 215

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 51

Text proposed by the Commission

(51) ‘re-use’ means the use by natural ***persons*** or legal ***entities of*** documents held by:

Amendment

(51) ‘re-use’ means the use by natural or legal ***persons of data or*** documents held by:

Or. en

Amendment 216

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 52

Text proposed by the Commission

Amendment

(52) ‘high-value datasets’ means data **and** documents the re-use of which is associated with important benefits for society, the environment and the economy, in particular because of their suitability for the creation of value-added services, applications and new, high-quality and decent jobs, and because of the number of potential beneficiaries of the value-added services and applications based on those data and documents;

(52) ‘high-value datasets’ means **personal and non-personal data, as well as** 50 documents the re-use of which is associated with important benefits for society, the environment and the economy, in particular because of their suitability for the creation of value-added services, applications and new, high-quality and decent jobs, and because of the number of potential beneficiaries of the value-added services and applications based on those data and documents;

Or. fr

Amendment 217
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point e
Regulation (EU) 2023/2854
Article 2 – paragraph 1 – point 53 – point d a (new)

Text proposed by the Commission

Amendment

(da) national security, public security defence or law and order, in accordance with Article 4(2) of the Treaty on European Union.

Or. fr

Amendment 218
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 2 – point e
Regulation (EU) 2023/2854
Article 2 – paragraph 1 – point 54

Text proposed by the Commission

Amendment

(54) ‘secure processing environment’ means the physical or virtual environment and organisational means to ensure

(54) ‘secure processing environment’ means the physical or virtual environment and organisational means to ensure

compliance with Union law in particular with regard to data subjects' rights, intellectual property rights, and commercial and statistical confidentiality, integrity and accessibility, as well as with applicable national law, and to allow the entity providing the secure processing environment to determine and supervise all data processing actions, including the display, storage, download and export of data and the calculation of derivative data through computational algorithms;

compliance with Union law in particular with regard to data subjects' rights, intellectual property rights, and commercial and statistical confidentiality, integrity and accessibility, as well as with applicable national law, ***in order to protect personal data and data relating to identifiable natural persons from re-identification, personal data breaches and any unlawful use or trading***, and to allow the entity providing the secure processing environment to determine and supervise all data processing actions, including the display, storage, download and export of data and the calculation of derivative data through computational algorithms;

Or. fr

Amendment 219

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 58

Text proposed by the Commission

(58) ‘formal open standard’ means a standard which has been laid down in written form, detailing specifications for the requirements on how to ensure software interoperability;

Amendment

(58) ‘formal open standard’ means a ***freely accessible*** standard which has been laid down in written form, detailing specifications for the requirements on how to ensure software interoperability;

Or. en

Amendment 220

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 60

Text proposed by the Commission

(60) ‘data localisation requirement’ means any obligation, prohibition, condition, limit or other requirement provided for in the laws, regulations or administrative provisions of a Member State or resulting from general and consistent administrative practices in a Member State and in bodies governed by public law, including in the field of public procurement, without prejudice to Directive 2014/24/EU, which imposes the processing of data in the territory of a specific Member State or hinders the processing of data in any other Member State;

Amendment

(60) ‘data localisation requirement’ means any obligation, prohibition, condition, limit or other requirement provided for in the laws, regulations or administrative provisions of a Member State or resulting from general and consistent administrative practices in a Member State and in bodies governed by public law, including in the field of public procurement, without prejudice to Directive 2014/24/EU, which imposes the processing of data in the territory of a specific Member State or hinders the processing of data in any other Member State. ***A requirement shall not constitute a data localisation requirement within the meaning of this point where it is justified by reasons of public security or where it is necessary and proportionate in order to protect personal data, sensitive data or high-value datasets from any access, transfer or use resulting from the extra-territorial application of a law of a third country that may cause harm to the Union or its Member States;***

Or. fr

Amendment 221

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 61 a (new)

Text proposed by the Commission

Amendment

(61a) "local network access" means access to product data or related service data through an interface operating on the electronic communications network under the user's own control, that does

not require the data to be transmitted to, processed by, or routed through a server or cloud infrastructure operated by the manufacturer, the data holder, or a third party.

Or. en

Justification

This amendment is connected to the following addition on access to connected products which aims to ensure that data access is made possible and operational without the data first being transmitted to, or made contingent upon the availability of, a server or cloud infrastructure operated by the manufacturer.

Amendment 222

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 61 a (new)

Text proposed by the Commission

Amendment

(61a) ‘pseudonymised data’ and ‘pseudonymous data’ mean, respectively pseudonymised data and pseudonymous data as defined in Article 4 of Regulation (EU) 2016/679;

Or. fr

Amendment 223

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – paragraph 1– point 61 b (new)

Text proposed by the Commission

Amendment

(61b) ‘state-of-the-art methods to preserve and reinforce privacy’ means:

techniques such as those referred to in Article 4 of Regulation (EU) 2016/679;

Or. fr

Amendment 224

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 a (new)

Regulation (EU) 2023/2854

Article 3 – paragraph 1

Present text

Connected products shall be designed and manufactured, and related services shall be designed and provided, in such a manner that product data and related service data, including the relevant metadata necessary to interpret and use those data, are, by default, easily, securely, free of charge, in a comprehensive, structured, commonly used and machine-readable format, and, where relevant and technically feasible, directly accessible to the user.

Amendment

2a. In Article 3, paragraph 1 is amended as follows:

"1. Connected products shall be designed and manufactured, and related services shall be designed and provided, in such a manner that product data and related service data, including the relevant metadata necessary to interpret and use those data, are, by default, easily, securely, free of charge, in a comprehensive, structured, commonly used and machine-readable format, and, where relevant and technically feasible, directly accessible to the user. *Where technically feasible, such access shall be available as local network access, in real time, without the data first being transmitted to, or made contingent upon the availability of, a server or cloud infrastructure operated by the manufacturer, the data holder, or a third party. The obligation shall not be considered fulfilled by an interface that transmits data to such infrastructure before returning it to the user.*"

Or. en

(32023R2854)

Justification

This addition, which is to be read in conjunction with definition 61a and the following amendment, closes the existing loophole by which "directly accessible" often means that a user is forced to install an app that is connected to the vendor's cloud. The text ensures that the obligations remain feasible as it does not create absolute obligations where local access is genuinely not possible.

Amendment 225

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 2 b (new)

Regulation (EU) 2023/2854

Article 4 – paragraph 4

Present text

4. Data holders shall not make the exercise of choices or rights under this Article by the user unduly difficult, including by offering choices to the user in a non-neutral manner or by subverting or impairing the autonomy, decision-making or choices of the user via the structure, design, function or manner of operation of a user digital interface or a part thereof.

Amendment

2b. in Article 4, a new paragraph is introduced after paragraph 4:

"4. Data holders shall not make the exercise of choices or rights under this Article by the user unduly difficult, including by offering choices to the user in a non-neutral manner or by subverting or impairing the autonomy, decision-making or choices of the user via the structure, design, function or manner of operation of a user digital interface or a part thereof.

4a. The user shall have the right to determine whether, and to what extent, product data or related service data generated on the user's local network is transmitted beyond that network to the manufacturer, the data holder, or any third party. The data holder shall provide the user with a readily accessible technical means to exercise or withdraw this determination at any time, free of charge, without this affecting the user's access rights under Article 3 or this Article. This paragraph shall not restrict processing of data strictly necessary for:

(a) cybersecurity and the delivery of security updates;

(b) compliance with a legal obligation to which the manufacturer or data holder is subject; or

(c) a safety recall."

Or. en

(32023R2854)

Amendment 226

Piotr Müller

Proposal for a regulation

Article 1 – paragraph 1 – point 3 – introductory part

Text proposed by the Commission

3. in Article 4, *paragraph 8 is* replaced by the following:

Amendment

3. in Article 4, *paragraphs 8 and 13 are* replaced by the following:

Or. en

Amendment 227

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8

Text proposed by the Commission

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the

Amendment

8. *Trade secrets shall only be disclosed provided that all specific necessary measures are taken to preserve the confidentiality of trade secrets in particular with respect to third parties. The data holder and the user can agree measures to preserve the confidentiality of the shared data, in particular in relation to third parties. The Commission shall issue guidance, in consultation with the European Data Innovation Board (EDIB), on the application of this*

direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may **refuse** on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

paragraph, such as the assessment of serious economic damage, and the enforceability of trade secrets protection in third countries. Trade secret shall not be used as a pretext to deny legitimate access to data subjects and regulatory bodies. Any refusal of access must constitute a measure of last resort. Before refusing access, the data controller must offer a viable and secure alternative. This alternative must guarantee legitimate data use while ensuring the non-disclosure of trade secrets. Such alternatives may include confidentiality agreements, restricted access protocols subject to regular audits, technical measures for data aggregation or anonymization, technical architectures and standards that preserve confidentiality.

In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to **notably** third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may ***withhold or, as the case may be, suspend the sharing of data identified as trade secrets*** on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without

undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.

Decisions regarding refusal shall be subject to review by an independent authority that will act transparently towards the requesting user or recipient and provide effective redress.

Or. en

Amendment 228
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 3
Regulation (EU) 2023/2854
Article 4 – paragraph 8

Text proposed by the Commission

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to **demonstrate** that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That **demonstration** shall be **duly** substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the

Amendment

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to **establish on reasonable grounds** that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets **or of industrial, strategic or sensitive data whose disclosure would be likely to cause damage to economic security, privacy or law and order**, or that the disclosure of **those data or of** trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, **including because of the likely onward transmission of data to those entities**, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That

connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;

assessment shall be **reasonably** substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, ***the chain of onward transmission of data that may reasonably be foreseen***, and the uniqueness and novelty of the connected product. ***Data holders shall not be required to undertake a comprehensive assessment of foreign legal systems, enforcement practices, or international law in order to rely on this paragraph. In particular, small and medium-sized enterprises should be entitled to rely on publicly available information and generally recognised risks when assessing the likelihood of unlawful acquisition, use, or disclosure.*** It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;

Or. fr

Amendment 229

Piotr Müller

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8

Text proposed by the Commission

8. In ***exceptional*** circumstances, where the data holder who is a trade secret holder ***is able to demonstrate*** that, ***despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the*** disclosure of trade secrets to the user

Amendment

8. In circumstances, where the data holder who is a trade secret holder ***finds*** that, ***the data requested may result in*** disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering

poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse *on a case-by-case basis* a request for access to the specific data in question. *That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay.* Where the data holder refuses to share data pursuant to this paragraph, it shall notify the *competent authority designated pursuant to Article 37*.;

weaker or non-equivalent protection compared to that under Union law, that data holder may refuse a request for access to the specific data in question. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the *party requesting the data*.;

Or. en

Amendment 230

Arba Kokalari

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8

Text proposed by the Commission

8. *In exceptional circumstances*, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is *highly* likely to suffer *serious* economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the

Amendment

8. Where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is likely to suffer economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities,

direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse *on a case-by-case basis* a request for access to the specific data in question. ***That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product.*** It shall be provided in writing to the user without undue delay. ***Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;***

which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse a request for access to the specific data in question. ***The refusal*** shall be provided in writing to the user without undue delay.

Or. en

Amendment 231

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8

Text proposed by the Commission

8. ***In exceptional circumstances,*** where the data holder who is a trade secret holder ***is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article,*** it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent

Amendment

8. Where the data holder who is a trade secret holder ***finds that*** it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse a request for access to the specific data in question. Where the data holder refuses to share data

protection compared to that under Union law, that data holder may refuse *on a case-by-case basis* a request for access to the specific data in question. *That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay.* Where the data holder refuses to share data pursuant to this paragraph, it shall notify the *competent authority* designated pursuant *to Article 37;*

pursuant to this paragraph, it shall notify the *user requesting the data* designated pursuant;

The Commission shall consult stakeholders and adopt guidelines on the application of paragraph 4(8). These shall identify specific third-country jurisdictions and types of data or practices that inherently pose a high risk to trade secrets in particular where the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law. The Commission shall provide a simplified template based on the list of objective criteria to help data holders to substantiate 'serious economic damage,' and where access may be granted even if data is highly sensitive and under what conditions.

Or. en

Amendment 232

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Text proposed by the Commission

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer **serious** economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Amendment

8. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. ***When assessing such risk, due account shall be taken of the strategic value of the data, the possibility of reverse engineering, the protection of intellectual property rights and the potential impact on the competitiveness of Union undertakings.*** That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Or. en

Justification

A well-functioning Single Market depends on both the free flow of data and effective protection of trade secrets and intellectual property. This amendment provides greater legal certainty by clarifying how economic risks should be assessed, while ensuring that mandatory

data-sharing obligations do not weaken the competitiveness of Union undertakings or reduce incentives to innovate and invest across the Single Market.

Amendment 233

Piotr Müller

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8 a (new)

Text proposed by the Commission

Amendment

8a. A data holder may use any readily available data that is non-personal data. A data holder shall not use such data to derive insights about the economic situation, assets and production methods of, or the use by, the user in any other manner that could undermine the commercial position of that user on the markets in which the user is active

Or. en

Justification

Frees businesses to use non-personal product data without concluding a separate contract with every user, removing a paperwork obligation that serves no protective purpose

Amendment 234

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 3 a (new)

Regulation (EU) 2023/2854

Article 4 – paragraph 13

Present text

Amendment

13. A data holder ***shall only*** use any readily available data that is non-personal data on the ***basis of a contract with the user***. A data holder shall not use such data to derive insights about the economic situation, assets and production methods

"13. A data holder ***is entitled to*** use any readily available data that is non-personal data. ***Such use shall be without prejudice to Regulation (EU) 2016/679 and shall comply with Union and national law on the protection of trade secrets and***

of, or the use by, the user in any other manner that could undermine the commercial position of that user on the markets in which the user is active.

intellectual property rights. A data holder shall not use such data to derive insights about the economic situation, assets and production methods of, or the use by, the user in any other manner that could undermine the commercial position of that user on the markets in which the user is active."

Or. en

(<https://eur-lex.europa.eu/eli/reg/2023/2854/oj/eng>)

Amendment 235

Piotr Müller

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – paragraph 11

Text proposed by the Commission

11. In **exceptional** circumstances, where the data holder who is a trade secret holder **is able to demonstrate** that, **despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the** disclosure of trade secrets to the **third party** poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse **on a case-by-case basis** a request for access to the specific data in question. **That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data**

Amendment

11. In circumstances, where the data holder who is a trade secret holder **finds** that, **the data requested may result in** disclosure of trade secrets to the **user** poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse a request for access to the specific data in question. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the **party requesting the data.**;

requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the *competent authority designated pursuant to Article 37.*;

Or. en

Amendment 236

Arba Kokalari

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – paragraph 11

Text proposed by the Commission

11. *In exceptional circumstances*, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is **highly** likely to suffer **serious** economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse **on a case-by-case basis** a request for access to the specific data in question. ***That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be***

Amendment

11. Where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is likely to suffer economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse a request for access to the specific data in question. ***The refusal*** shall be provided in writing to the third party without undue delay.

provided in writing to the third party without undue delay. *Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;*

Or. en

Amendment 237

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – Paragraph 11

Text proposed by the Commission

11. In exceptional circumstances, where the data holder who is a trade secret holder is *able to demonstrate* that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer *serious* economic damage from the disclosure of trade secrets or that the disclosure *of trade secrets* to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That *demonstration* shall be *duly* substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data

Amendment

11. In exceptional circumstances, where the data holder who is a trade secret holder is *in a position to establish on reasonable grounds* that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer *significant* economic damage from the disclosure of trade secrets *or of industrial, strategic or sensitive data whose disclosure would be likely to cause damage to economic security, privacy or law and order*, or that the disclosure *of such data* to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, *including because of the likely onward transmission of data to those entities*, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That *assessment* shall be *reasonably* substantiated on the basis of objective elements, such as the

holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;

enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, ***the chain of onward transmission of data that may reasonably be foreseen***, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;

Or. fr

Amendment 238

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – paragraph 11

Text proposed by the Commission

11. ***In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets***

Amendment

11. Where the data holder who is a trade secret holder ***finds that the data requested may result in*** the disclosure of trade secrets, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the ***user requesting the data.***;

protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the *competent authority designated pursuant to Article 37;*

The Commission shall consult stakeholders and adopt guidelines on the application of paragraph 5(11). These shall identify specific third-country jurisdictions and types of data or practices that inherently pose a high risk to trade secrets in particular where the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law. The Commission shall provide a simplified template based on the list of objective criteria to help data holders to substantiate 'serious economic damage,' and where access may be granted even if data is highly sensitive and under what conditions.

Or. en

Amendment 239
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 1 – paragraph 1 – point 4
Regulation (EU) 2023/2854
Article 5 – paragraph 11

Text proposed by the Commission

Amendment

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure **notably** to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Or. en

Amendment 240

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 13 – paragraph 11 a (new)

Text proposed by the Commission

Amendment

**11a. Article 13 is amended as follows:
A paragraph 10 is added: (10) The provisions of this article should also apply to individuals and institutions carrying out scientific research, ensuring that they benefit from no less favourable terms than enterprises.**

Or. en

Amendment 241

Piotr Müller

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 1

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies ***and other than small and medium-sized enterprises and small mid-cap enterprises***, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests ***shall not extend to data protected as trade secrets or to commercially sensitive information, shall be limited to non-personal data that is strictly necessary and proportionate to the public emergency, and shall be addressed to the person entitled to dispose of the data concerned.*** Such requests may also be made where the

production of official statistics is required in relation to a public emergency.

Or. en

Justification

Cuts the business-to-government data-provision burden.

Amendment 242

Maria Grapini

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15 a – paragraph 1

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. ***Data requesters shall ensure that received data are adequately protected and shall take all measures necessary to prevent any undue harm to the data holder as a result of the data being made available.*** Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Or. ro

Amendment 243

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15 a – paragraph 1

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may, ***as a last resort***, request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. ***An exceptional need is present only when the data concerned are strictly necessary for the purpose pursued and cannot be obtained under equivalent conditions by another means.*** Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Or. fr

Amendment 244

Morten Løkkegaard, Svenja Hahn, Sandro Gozi

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 1

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates **an exceptional need** to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates, ***on the basis of objective and verifiable evidence, that access to the requested data is strictly necessary and proportionate and that no less intrusive means are reasonably available***, to use certain data to carry out its statutory duties in the public interest when responding to, mitigating, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Or. en

Amendment 245
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 7
Regulation (EU) 2023/2854
Article 15a – paragraph 1

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, ***mitigating, or supporting the recovery from*** a public

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to a public emergency, it may request from data

emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Or. en

Amendment 246

Morten Løkkegaard, Svenja Hahn, Sandro Gozi

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 2

Text proposed by the Commission

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to address the public emergency, personal data may also be requested and, where possible, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Amendment

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. ***Before requesting personal data, the requesting authority shall demonstrate that aggregated, anonymised or other non-personal data are insufficient to achieve the intended objective.*** Where the provision of non-personal data is insufficient to address the public emergency, personal data may also be requested and, where possible, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Or. en

Amendment 247
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 7
Regulation (EU) 2023/2854
Article 15 a – paragraph 2

Text proposed by the Commission

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. *Where* the provision of non-personal data is insufficient to address the public emergency, *personal data may also be requested* and, where possible, made available in pseudonymised form, subject to appropriate technical and organisational measures to ensure their protection.

Amendment

2. Where the data requested are ***strictly*** necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. ***Personal data may only be requested as a last resort where it is demonstrated that*** the provision of non-personal data is insufficient to address the public emergency, and ***must***, where possible, ***be*** made available in pseudonymised form, subject to appropriate technical and organisational measures to ensure their protection ***against any re-identification, any personal data breaches and any unlawful use.***

Or. fr

Amendment 248
Morten Løkkegaard, Jeannette Baljeu, Svenja Hahn

Proposal for a regulation
Article 1 – paragraph 1 – point 7
Regulation (EU) 2023/2854
Article 15a – paragraph 2

Text proposed by the Commission

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain

Amendment

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain

such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to address the public emergency, personal data may also be requested and, *where possible*, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to address the public emergency, personal data may also be requested and, *wherever technically feasible*, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Or. en

Amendment 249

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 2

Text proposed by the Commission

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to **address** the public emergency, personal data may also be requested and, *where possible*, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Amendment

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to **respond to** the public emergency, personal data may also be requested and, *unless strictly necessary*, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Or. en

Amendment 250

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 3

Text proposed by the Commission

Amendment

3. Where the data requested are necessary to mitigate or support the recovery from a public emergency, a requesting body pursuant to paragraph 1 acting on the basis of Union or national law, may request specific non-personal data, the lack of which prevent it from mitigating or supporting the recovery from a public emergency. Such requests shall not be made to microenterprises and small enterprises.;

deleted

Or. en

Amendment 251

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15 a – paragraph 3 a (new)

Text proposed by the Commission

Amendment

3a. A public sector body, the Commission, the European Central Bank or a Union body that has received data as a result of a public emergency must:

(a) implement technical and organisational measures designed to preserve the confidentiality and integrity of the requested data and the security of the data transfers, in particular personal data, and to safeguard the rights and freedoms of data subjects;

(b) erase the data as soon as they are no longer necessary for the stated purpose and inform the data holder and any physical or legal person having received

the data with a view to carrying out the task for which the request was made without undue delay that the data have been erased, unless archiving of the data is required in accordance with Union or national law on public access to information in the context of transparency obligations.

Or. fr

Amendment 252

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu, Sandro Gozi

Proposal for a regulation

Article 1 – paragraph 1 – point 7 – point i (new)

Regulation (EU) 2023/2854

Text proposed by the Commission

Amendment

(i) Requests pursuant to this Article shall be specific, targeted and limited to the categories of data strictly necessary to address the public emergency. General or exploratory requests shall not be permitted.

Or. en

Amendment 253

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 8 a (new)

Regulation (EU) 2023/2854

Article 16

Text proposed by the Commission

Amendment

(8a) In Article 16, the following paragraph is added:

A public sector body, the Commission, the European Central Bank or a Union body

having received data as a result of a public emergency must:

(a) have implemented technical and organisational measures ensuring the confidentiality and integrity of the requested data and the security of the data transfers, in particular personal data, and preserving the rights and freedoms of data subjects; and

(b) erase the data as soon as they are no longer necessary for the stated purpose and inform the data holder and individuals or organisations that received the data pursuant to Article 21(1) without undue delay that the data have been erased, unless archiving of the data is required in accordance with Union or national law on public access to documents in the context of transparency obligations.

Or. fr

Amendment 254

Morten Løkkegaard, Svenja Hahn, Sandro Gozi

Proposal for a regulation

Article 1 – paragraph 1 – point 11 – point b

Regulation (EU) 2023/2854

Article 19 – paragraph 3

Text proposed by the Commission

3. Disclosure of trade secrets to a public sector body, the Commission, the European Central Bank or a Union body shall be required only to the extent that it is strictly necessary to achieve the purpose of a request under Article 15a. In such a case, the data holder or, where they are not the same person, the trade secret holder shall identify the data which are protected as trade secrets, including in the relevant metadata. The public sector body, the Commission, the European Central Bank or the Union body shall, prior to the

Amendment

3. Disclosure of trade secrets to a public sector body, the Commission, the European Central Bank or a Union body shall be required only to the extent that it is strictly necessary ***and where the requesting authority has demonstrated that no alternative source of information capable of achieving the same objective is available*** to achieve the purpose of a request under Article 15a. In such a case, the data holder or, where they are not the same person, the trade secret holder shall identify the data which are protected as

disclosure of trade secrets, take all necessary and appropriate technical and organisational measures to preserve the confidentiality of the trade secrets, including, as appropriate, the use of model contractual terms, technical standards and the application of codes of conduct.;

trade secrets, including in the relevant metadata. The public sector body, the Commission, the European Central Bank or the Union body shall, prior to the disclosure of trade secrets, take all necessary and appropriate technical and organisational measures to preserve the confidentiality of the trade secrets, including, as appropriate, the use of model contractual terms, technical standards and the application of codes of conduct.;

Or. en

Amendment 255

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 11 – point b a (new)

Regulation (EU) No 2023/2854

Article 19 – paragraph 3 a

Text proposed by the Commission

Amendment

(ba) the following paragraph 3a is inserted:

The public sector body, the Commission, the European Central Bank or a Union body, as well as any joint venture shall ensure that trade secrets obtained in the context of a public emergency are erased as soon as they are no longer necessary for the purposes for which the request was made. Where those data are shared with a third party, the recipient must as far as possible be given access without data transmission or data downloading, and must erase the data as soon as they are no longer necessary and must not transmit them to third parties.

Or. fr

Amendment 256

Morten Løkkegaard, Svenja Hahn, Jeannette Baljeu

Proposal for a regulation

Article 1 – paragraph 1 – point 12

Regulation (EU) 2023/2854

Article 20 – paragraph 2 – subparagraph 1 a (new)

Text proposed by the Commission

Amendment

Compensation shall include reasonable technical, organisational, legal and personnel costs directly linked to compliance with the request.

Or. en

Justification

SMEs should not bear disproportionate costs resulting from mandatory data-sharing obligations.

Amendment 257

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 12

Regulation (EU) 2023/2854

Article 20 – paragraph 2

Text proposed by the Commission

Amendment

2. The data holder shall be entitled to fair compensation for making data available in compliance with a request made pursuant to Article 15a(3). Such compensation shall cover the technical and organisational costs incurred to comply with the request including, where applicable, the costs of anonymisation, pseudonymisation, aggregation and of technical adaptation, and a reasonable margin. Upon request of the public sector body, the Commission, the European Central Bank or the Union body, the data holder shall provide information on the ***deleted***

basis for the calculation of the costs and the reasonable margin.

Or. en

Amendment 258

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 14

Regulation (EU) 2023/2854

Article 22 a

Text proposed by the Commission

Where a dispute arises concerning a request for data under Article 15a, including its refusal, modification, the level of compensation, or the transmission or making available of data, the data holder, the public sector body, the Commission, the European Central Bank or the Union body may lodge a complaint with the competent authority, designated pursuant to Article 37, of the Member State where the data holder is established.

Amendment

Where a dispute arises concerning a request for data under Article 15a, including its refusal *or* modification, ***pursuant to Article 18(5)***, the level of compensation, or the transmission or making available of data, ***pursuant to Article 21***, the data holder, the public sector body, the Commission, the European Central Bank or the Union body may lodge a complaint with the competent authority, designated pursuant to Article 37, of the Member State where the data holder is established. ***Before making a referral to the competent authority, the parties shall endeavour, where applicable, to resolve the dispute by modifying the request.***

Or. fr

Amendment 259

Piotr Müller, Diego Solier

Proposal for a regulation

Article 1 – paragraph 1 – point 14 a (new)

Regulation 2023/2854

Article 30 – paragraph 1

Present text

Amendment

1. Providers of data processing services that concern scalable and elastic computing resources limited to infrastructural elements such as servers, networks and the virtual resources necessary for operating the infrastructure, but that do not provide access to the operating services, software and applications that are stored, otherwise processed, or deployed on those infrastructural elements, shall, in accordance with Article 27, take all reasonable measures in their power to facilitate that the customer, after switching to a service covering the same service type, achieves functional equivalence in the use of the destination data processing service. The source provider of data processing services shall facilitate the switching process by providing **capabilities**, adequate information, documentation, technical support and, where appropriate, the necessary tools.

14a. Article 30, paragraph 1 is replaced by the following:

"1. Providers of data processing services that concern scalable and elastic computing resources limited to infrastructural elements such as servers, networks and the virtual resources necessary for operating the infrastructure, but that do not provide access to the operating services, software and applications that are stored, otherwise processed, or deployed on those infrastructural elements, shall, in accordance with Article 27, take all reasonable measures in their power to facilitate that the customer, after switching to a service covering the same service type, achieves functional equivalence in the use of the destination data processing service. The source provider of data processing services shall facilitate the switching process by providing adequate information, documentation, technical support and, where appropriate, the necessary tools."

Or. en

(Regulation 2023/2854)

Justification

The word “capabilities” should be deleted as it creates an undefined and potentially open-ended obligation. Switching rules should help customers move between services, not require providers to recreate or guarantee another provider’s technical functionalities, performance or architecture. The change supports the Digital Omnibus simplification objective, aligns Article 30 with Chapter VI and reduces disproportionate compliance risks in security-sensitive cloud environments.

Amendment 260

Piotr Müller, Diego Solier

Proposal for a regulation

Article 1 – paragraph 1 – point 14 b (new)

Regulation 2023/2854

Article 31 – paragraph 1

Present text

Amendment

1. The obligations laid down in Article 23, point (d), Article 29 and Article 30(1) and (3) shall not apply to data processing services of which the majority of main features has been custom-built to accommodate the specific needs of an individual customer or where all components have been developed for the purposes of an individual customer, ***and where those data processing services are not offered at broad commercial scale via the service catalogue of the provider of data processing services.***

14b. In Article 31, paragraph 1 is amended as follows:

"1. The obligations laid down in Article 23, point (d), Article 29 and Article 30(1) and (3) shall not apply to data processing services of which the majority of main features has been custom-built to accommodate the specific needs of an individual customer or where all components have been developed for the purposes of an individual customer."

Or. en

Justification

The text of the original act is aligned with the derogations proposed by the Commission in new paragraphs 1a and 1b of Article 31. A service may be offered in a catalogue while still being substantially customised at the customer's request and according to the customer's specific needs. The law should not discourage providers, especially smaller EU providers, from offering tailored services.

Amendment 261

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 15

Regulation (EU) 2023/2854

Article 31

Text proposed by the Commission

Amendment

15. in Article 31, the following paragraphs 1a and 1b are inserted:

deleted

‘1a.

The obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those

referred to in Article 30(1), where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer, if the provision of such services is based on a contract concluded before or on 12 September 2025.

The provider of such data processing services shall not be required to renegotiate or amend a contract for the provision of those services before its expiry if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.

1b.

A provider of a data processing service may include provisions on proportionate early termination penalties in a contract of fixed duration on the provision of data processing services other than those referred to in Article 30(1).

Where the provider of data processing service is a small and medium-sized enterprise or a small mid-cap, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), if the provision of such services is based on a contract concluded before or on 12 September 2025.

Where the provider of a data processing service is a small and medium-sized enterprise or a small mid-cap, the provider shall not be required to renegotiate or amend a contract for the provision of a data processing service other than those referred to in Article 30(1) before its expiry 1 if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary

to Article 29(1), (2), or (3) shall be considered null and void.;

Or. en

Amendment 262

Piotr Müller, Diego Solier

Proposal for a regulation

Article 1 – paragraph 1 – point 15

Regulation 2023/2854

Article 31 – new paragraph 1a

Text proposed by the Commission

The obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services ***other than those referred to in Article 30(1)***, where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer, if the provision of such services is based on a contract concluded before ***or on 12 September 2025***.

Amendment

The obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services, where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer, if the provision of such services is based on a contract concluded before ***[entry into force of this Regulation]***.

Or. en

Justification

It is not clear why only selected services shall be exempted. Following the logic of Article 31, all custom-built or heavily modified services should benefit from the exemption.

Amendment 263

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 15

Regulation (EU) 2023/2854

Article 31 – paragraph 1 b

Text proposed by the Commission

Amendment

A provider of a data processing service may include provisions on proportionate early termination penalties in a contract of fixed duration on the provision of data processing services other than those referred to in Article 30(1).

A provider of a data processing service may include provisions on proportionate early termination penalties in a contract of fixed duration on the provision of data processing services other than those referred to in Article 30(1), ***provided that those penalties are limited to the costs specific to the customer and are objectively demonstrated, direct and unamortised. They must not be intended to restrict or result in a restriction of the effective possibility for customers to change provider, retrieve their data or terminate their contracts.***

Or. fr

Amendment 264

Piotr Müller, Diego Solier

Proposal for a regulation

Article 1 – paragraph 1 – point 15

Regulation 2023/2854

Article 31 – paragraph 1b – first subparagraph

Text proposed by the Commission

A provider of a data processing service may include provisions on ***proportionate*** early termination penalties in a contract of fixed duration on the provision of data processing services ***other than those referred to in Article 30(1).***

Amendment

A provider of a data processing service may include provisions on early termination penalties in a contract of fixed duration on the provision of data processing services.

Or. en

Justification

The proposed change runs counter to the logic and other provisions of the Data Act and appears to reflect an unintended inconsistency in the Commission's approach. Its practical effect would be highly negative for pricing stability and long-term predictability for customers. Moreover, by treating IaaS, PaaS and SaaS services differently without sufficient justification, it would create discriminatory regulatory outcomes and risk distorting competition within the cloud market.

Amendment 265
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 15
Regulation (EU) 2023/2854
Article 31 – paragraph 1 b

Text proposed by the Commission

Where the provider of data processing **service** is a small and medium-sized enterprise or a small mid-cap, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), ***if the provision of such services is based on a contract concluded before or on 12 September 2025.***

Amendment

Where the provider of data processing **services** is a small and medium-sized enterprise or a small mid-cap, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), ***where the majority of the service characteristics and functionalities have been adapted by the provider to the specific needs of the customer.***

Or. fr

Amendment 266
Piotr Müller, Diego Solier

Proposal for a regulation
Article 1 – paragraph 1 – point 15
Regulation 2023/2854
Article 31 – paragraph 1b – second subparagraph

Text proposed by the Commission

Where the provider of data processing service is a small **and** medium-sized enterprise **or a small mid-cap**, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services ***other than those referred to in Article 30(1)***, if the provision of such services is based on a contract concluded before ***or on 12 September 2025.***

Amendment

Where the provider of data processing service is a **micro**, small **or** medium-sized enterprise, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services, if the provision of such services is based on a contract concluded before ***[entry into force of this Regulation]***.

Or. en

Amendment 267
Piotr Müller, Diego Solier

Proposal for a regulation
Article 1 – paragraph 1 – point 15
Regulation 2023/2854
Article 31 – new paragraph 1b – third subparagraph

Text proposed by the Commission

Where the provider of a data processing service ***is a small and medium-sized enterprise or a small mid-cap, the provider*** shall not be required to renegotiate or amend a contract for the provision of a data processing service ***other than those referred to in Article 30(1)*** before its expiry ***1*** if that contract was concluded before ***or on 12 September 2025***. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.;

Amendment

The providers of a data processing ***services*** shall not be required to renegotiate or amend a contract for the provision of a data processing service before its expiry if that contract was concluded before ***[entry into force of this Regulation]***. ***However***, any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.;

Or. en

Justification

The amendment safeguards core principles of EU law, including legal certainty, legitimate expectations and non-retroactivity. Imposing new obligations on contracts lawfully concluded before 12 September 2025 would create a dangerous precedent of retroactive regulatory interference, undermining trust in the EU legal order, contractual stability and investment predictability.

Amendment 268
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 15
Regulation (EU) 2023/2854
Article 31 – paragraph 1 b

Text proposed by the Commission

Amendment

1b. Notwithstanding paragraph 1b, the customer may terminate the contract

without incurring early termination penalties or switching charges, except for reasonable charges covering, essentially, the costs directly linked to the change of operator, in any of the following cases:

(a) where the provider unilaterally makes a significant change to the contract, including a significant price increase, a reduction in functionalities, a change to the applicable service level agreements, a change to the conditions of use or the removal of an essential functionality;

(b) where the provider breaches its essential obligations under the contract or this Regulation;

(c) where the provider no longer complies with an obligation resulting from Regulation (EU) 2023/2854, Regulation (EU) 2016/679, Directive (EU) 2022/2555 or any other applicable legislation in such a way that the customer can no longer reasonably be expected to maintain the contract;

(d) where the provider, which is contractually obliged to continuously improve the service, is manifestly in breach of that obligation, or where the service level worsens significantly;

(e) where an event takes place that undermines trust in the provider, such as the loss of certification required by the contract, the removal of a regulatory authorisation or a change of ownership resulting in incompatibility with the customer's requirements.

Such termination shall not affect other remedies available to the customer pursuant to Union or national contract law.

Or. fr

Proposal for a regulation

Article 1 – paragraph 1 – point 16 – point a

Regulation (EU) 2023/2854

Article 32 – paragraph 1

Text proposed by the Commission

1. Providers of data processing services, the public sector body making available data or documents in accordance with Chapter VIIc Section 3, the natural or legal person to which the right to re-use data or documents in accordance with Chapter VIIc Section 3 was granted, a data intermediation services provider or a recognised data altruism organisation shall take all adequate technical, organisational and legal measures, including contracts, in order to prevent ***international and third-country governmental access and transfer of*** non-personal data held in the Union where such transfer or access would create a conflict with Union law or with the national law of the relevant Member State, without prejudice to paragraph 2 or 3.

Amendment

1. Providers of data processing services, the public sector body making available data or documents in accordance with Chapter VIIc Section 3, the natural or legal person to which the right to re-use data or documents in accordance with Chapter VIIc Section 3 was granted, a data intermediation services provider or a recognised data altruism organisation, ***as well as any processor or secondary processor acting on their behalf***, shall take all adequate technical, organisational and legal measures, including contracts, in order to prevent ***any access to*** non-personal data held in the Union ***or any transfer of such data requested by a third-country authority or by an international body***, where such transfer or access would create a conflict with Union law or with the national law of the relevant Member State, without prejudice to paragraph 2 or 3. ***That obligation shall apply irrespective of the place of establishment of the entity which holds or controls the data, where the data are held in the Union.***

Or. fr

Amendment 270

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 16 – point a

Regulation 2023/2854

Article 32 – paragraph 2

Text proposed by the Commission

Amendment

2. Any decision or judgment of a third-country court or tribunal and any decision of a third-country administrative authority requiring a provider of data processing services, the public sector body making available data or documents in accordance with Chapter VIIc Section 3, the natural or legal person to which the right to re-use data or documents in accordance with Chapter VIIc Section 3 was granted, a data intermediation services provider or a recognised data altruism organisation to transfer or give access to non-personal data falling within the scope of this Regulation held in the Union shall be recognised or enforceable in any manner only if based on an international agreement, such as a mutual legal assistance treaty, in force between the requesting third country and the Union, or any such agreement between the requesting third country and a Member State.’;

2. Any decision or judgment of a third-country court or tribunal and any decision of a third-country administrative authority requiring a provider of data processing services, the public sector body making available data or documents in accordance with Chapter VIIc Section 3, the natural or legal person to which the right to re-use data or documents in accordance with Chapter VIIc Section 3 was granted, a data intermediation services provider or a recognised data altruism organisation to transfer or give access to non-personal data falling within the scope of this Regulation held in the Union shall be recognised or enforceable in any manner only if based on an international agreement, such as a mutual legal assistance treaty, in force between the requesting third country and the Union, or any such agreement between the requesting third country and a Member State.’. ***Where the agreement is concluded between the requesting third country and the Union, it shall only give access to the data held by the institutions, agencies and bodies of the Union, and where it is concluded between the requesting third country and a Member State, it shall not give access to data held in any other Member State;***

Or. fr

Amendment 271

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 16 – point b

Regulation (EU) 2023/2854

Article 32 – paragraph 3 a (new)

Text proposed by the Commission

Amendment

3a. By way of derogation from paragraphs 2 and 3, the Member States may, for reasons of public security or to protect their essential security interests,

designate categories of non-personal data held on their territory whose transfer to a court, tribunal or administrative authority of a third country or access to those data by the latter is prohibited where such transfer or such access would be likely to prejudice public security, the continuity of essential services or the strategic or economic autonomy of the Union or of the relevant Member State. Such designation shall be limited to what is strictly necessary and proportionate to the aim pursued.

Or. fr

Amendment 272
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 16 – point c
Regulation 2023/2854
Article 32 – paragraph 5

Text proposed by the Commission

5. The provider of data processing services, the public sector body making available data or documents in accordance with Chapter VIIc Section 3, the natural or legal person to which the right to re-use data or documents in accordance with Chapter VIIc Section 3 was granted, the data intermediation services provider or the recognised data altruism organisation shall inform the natural or legal person whose rights and interests might be affected about the existence of a request of a third-country authority to access its data before ***complying with*** that request, except where the request serves law enforcement purposes and for as long as this is necessary to preserve the effectiveness of the law enforcement activity.’;

Amendment

5. The provider of data processing services, the public sector body making available data or documents in accordance with Chapter VIIc Section 3, the natural or legal person to which the right to re-use data or documents in accordance with Chapter VIIc Section 3 was granted, the data intermediation services provider or the recognised data altruism organisation shall inform the natural or legal person whose rights and interests might be affected about the existence of a request of a third-country authority to access its data, ***pursuant to an international agreement as referred to in paragraph 2***, before ***examining*** that request, except where the request serves law enforcement purposes and for as long as this is necessary to preserve the effectiveness of the law enforcement activity.’;

Amendment 273
Piotr Müller, Diego Solier

Proposal for a regulation
Article 1 – paragraph 1 – point 16 a (new)
Regulation 2023/2854
Article 35 – paragraph 5

Present text

5. The Commission may, by means of implementing acts, adopt common specifications based on open interoperability specifications covering all of the essential requirements laid down in paragraphs 1 and 2.

Amendment

16a. In Article 35, paragraph 5 is amended as follows:

"5. The Commission may, by means of implementing acts, adopt common specifications based on open interoperability specifications covering all of the essential requirements laid down in paragraphs 1 and 2 **only where no harmonised standard or standards covering the relevant requirements are available, no standardisation work covering those requirements is ongoing, and the relevant European standardisation organisations have formally refused the request to develop harmonised standards. Before adopting common specifications, the Commission shall demonstrate, on the basis of a public technical and economic assessment, that they are strictly necessary, technically and economically feasible, and proportionate. Any common specifications adopted pursuant to this paragraph shall not go beyond the essential requirements laid down in paragraphs 1 and 2 and shall not impose additional technical design, architectural, operational or commercial obligations.**"

Or. en

Justification

This amendment prevents the Data Act from becoming an outlier in EU law by allowing Commission-mandated common specifications without a prior standardisation process. In

line with better law-making, proportionality and market-driven standardisation, common specifications must remain a last-resort tool, based on evidence and feasibility, not a shortcut for politically imposed technical solutions or new obligations beyond the Regulation's essential requirements.

Amendment 274

Piotr Müller, Diego Solier

Proposal for a regulation

Article 1 – paragraph 1 – point 16 b (new)

Regulation 2023/2854

Article 35 – paragraph 8

Present text

8. For the purpose of Article 30(3), the Commission ***shall***, by means of implementing acts, publish the references of harmonised standards and common specifications for the interoperability of data processing services in a central Union standards repository for the interoperability of data processing services.

Amendment

16b. In Article 35, paragraph 8 is amended as follows:

"8. For the purpose of Article 30(3), the Commission ***may***, by means of implementing acts, publish the references of harmonised standards and common specifications for the interoperability of data processing services in a central Union standards repository for the interoperability of data processing services. ***References to common specifications shall not be published unless those common specifications have been adopted in accordance with paragraph 5 and 6.***

Without prejudice to the publication of references to harmonised standards developed pursuant to Regulation (EU) No 1025/2012, the Commission shall not select or publish any reference where doing so would disproportionately favour a specific provider, group of providers, technical stack, architecture or business model, or impose unnecessary migration, re-engineering or compliance costs where less disruptive alternatives are available."

Or. en

Justification

As per changes to Article 35 - paragraph 5 and to ensure that open interoperability specifications, as well as common specifications are not used to distort the competition.

Amendment 275

Piotr Müller, Diego Solier

Proposal for a regulation

Article 1 – paragraph 1 – point 16 c (new)

Regulation 2023/2854

Article 35 – new paragraphs 8a and 8b

Text proposed by the Commission

Amendment

16c. In Article 35, the following paragraphs are inserted:

8a. Before publishing any reference pursuant to paragraph 8, the Commission shall publish a notice identifying the exact version of the harmonised standard, common specification or open interoperability specification concerned, the data processing services covered, the expected legal effects under Article 30(3), and the rules applicable to revision, update, withdrawal, equivalence of versions, and the admission of alternative specifications or standards. The Commission shall consult data processing service providers, customers, relevant European and international standardisation bodies, and, where applicable, the organisation responsible for developing or maintaining the relevant open interoperability specification.

8b. The Commission shall publish, together with the implementing act referred to in paragraph 8, a summary of the consultation, the reasons for selecting the relevant reference, the assessment of available or possible alternatives, and the identity of any external contractors, including individuals managing the process, experts or organisations materially involved in the assessment,

selection or preparation of the reference. Any substantive communication between the Commission, such contractors, experts or organisations, and the organisation responsible for developing or maintaining the relevant open interoperability specification shall be documented and made public, without prejudice to the protection of confidential business information and personal data.

Or. en

Justification

This amendment establishes clear governance and transparency safeguards for the central Union standards repository without duplicating the substantive conditions in Article 35(5). It ensures that references added to the repository are version-specific, scope-limited and subject to stakeholder scrutiny. It also prevents opaque preparation of common specifications through external consultants or privileged informal channels, reducing risks of regulatory capture and ensuring equal access, market trust and better law-making.

Amendment 276

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 17

Regulation (EU) 2023/2854

Article 36

Text proposed by the Commission

Amendment

17. Article 36 is deleted.

deleted

Or. en

Amendment 277

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 a – point 1 a

1a. Moreover, in order to monitor the implementation of this Regulation and to identify best practices, the Commission shall put in place a system for the voluntary registration of providers of data processing services which: (a) apply state-of-the-art pseudonymisation techniques to the data they process; (b) process high-value datasets or protected data as trade secrets; (c) are exposed to risks of extraterritorial interference, including the unilateral suspension of services, the forced transfer of data or unauthorised access by third-country authorities; (d) process sensitive data on the basis of a legitimate interest for the purposes of scientific research and developing innovative solutions and processes.

Or. fr

Amendment 278

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation 2023/2854

Article 32 b

(1) Each Member State shall designate one or more competent authorities responsible for the application and enforcement of this Chapter in accordance with Article 37(1).

(1) Each Member State shall designate one or more competent authorities responsible for the application and enforcement of this Chapter in accordance with Article 37(1), ***and which have direct access to the register referred to in Article 32a.***

Or. fr

Amendment 279

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation 2023/2854

Article 32 c

Text proposed by the Commission

(c) *where they offer additional tools and services to data holders or data subjects for the specific purpose of facilitating the exchange of data, such as temporary storage, **curation**, conversion, encryption, anonymisation and pseudonymisation, such tools and services are used only at the explicit request or approval of the data holder or data subject;*

Amendment

(c) *the data intermediation services provider shall provide the tools and services necessary for facilitating the exchange of data, such as temporary storage, **preservation**, conversion, encryption, anonymisation and pseudonymisation, and shall implement appropriate technical and organisational measures to prevent the re-identification of pseudonymised data, personal data breaches and any unlawful acquisition, use, disclosure or transfer of data for which it provides data intermediation services; where the data are made available in pseudonymised or anonymised form, the provider shall apply state-of-the-art techniques aimed at preserving and reinforcing privacy protection.*

Or. fr

Amendment 280

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c

Text proposed by the Commission

(iii) the value-added services are offered through a functionally separate entity;

Amendment

(iii) the value-added services are offered through a functionally separate entity *that is legally, organisationally and operationally separate from the data intermediation service provider;*

Amendment 281
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32c – paragraph d – III

Text proposed by the Commission

(iii) the value-added services are offered through a functionally separate entity;

Amendment

(iii) the value-added services are offered through a ***separate legal person.***
SMEs/SMCs may offer value-added services through a functionally separate entity;

Or. en

Amendment 282
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32c – point e

Text proposed by the Commission

(e) the data intermediation services provider offering services to data subjects acts in the data subjects' best interest where it facilitates the exercise of their rights, in particular by informing and, where appropriate, advising data subjects in a concise, transparent, intelligible and easily accessible manner about intended data uses by data users and standard terms and conditions attached to such uses before data subjects give consent.

Amendment

(e) the data intermediation services provider offering services to data subjects acts in the data subjects' best interest where it facilitates the exercise of their rights, in particular by informing and, where appropriate, advising data subjects in a concise, transparent, intelligible and easily accessible manner about intended data uses by data users and standard terms and conditions attached to such uses before data subjects give consent. ***Data intermediation service providers shall not use data made available through their services for advertising, insurance,***

profiling, ranking, price discrimination, training of AI systems or any purpose other than putting those data at the disposal of data users in accordance with the instructions of the data holder or data subject.

Or. en

Amendment 283

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – point e a (new)

Text proposed by the Commission

Amendment

(ea) The data intermediation services provider ensures that the procedure for access to its service is fair, transparent and non-discriminatory for both data subjects and data holders, as well as for data users, including with regard to pricing structure, contracts and terms of service;

Or. en

Amendment 284

Kateřina Konečná

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point ea(new)

Text proposed by the Commission

Amendment

(ea) the data intermediation services provider takes necessary technical or organisational measures to ensure that storage of non-personal data can be done

*on the territory of the European Union
upon explicit and motivated request of the
data explicit request of the data holder or
data subject;*

Or. en

Amendment 285

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – point e b (new)

Text proposed by the Commission

Amendment

*(eb) The data intermediation services
provider takes the necessary technical,
organisational measures to ensure an
appropriate level of security for the
storage, processing and transmission of
non-personal data, including by
maintaining a log record of the
intermediation and have procedures in
place to prevent fraudulent or abusive
practices in relation to parties seeking
access through its data intermediation
services;*

Or. en

Amendment 286

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – point e c (new)

Text proposed by the Commission

Amendment

(ec) The data intermediation services provider shall, in the event of its insolvency, ensure a reasonable continuity of the provision of its data intermediation services and, where such data intermediation services ensure the storage of data, shall have mechanisms in place to allow data holders and data users to obtain access to, transfer or to retrieve their data and, where such data intermediation services are provided between data subjects and data users, to allow data subjects to exercise their rights.

Or. en

Amendment 287

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e

Text proposed by the Commission

Data intermediation services provider which meets the requirements set out in Article 32c **may** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

Data intermediation services provider which meets the requirements set out in Article 32c **shall** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment, **prior to the commencement of their services. Where the processing activities of the data intermediation service provider are likely to pose a high risk to the rights and freedoms of natural persons within the meaning of Article 35 of Regulation (EU) 2016/679, prior notification is mandatory, regardless of the intended designation. Registration by a digital service provider with the competent authority of one Member State shall automatically lead to its immediate**

*inclusion in the public Union register.
This single registration shall be valid and
produce full legal effects in all Member
States, without any additional national
procedures or requirements being
imposed.*

Or. en

Amendment 288

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e

Text proposed by the Commission

Data altruism organisation which meets the requirements set out in Article 32d **may** submit an application for registration in the public Union register of recognised data altruism organisations to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

Data altruism organisation which meets the requirements set out in Article 32d **shall** submit an application for registration in the public Union register of recognised data altruism organisations to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

Amendment 289

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e

Text proposed by the Commission

(3) Competent authorities **shall establish the necessary application forms.**

Amendment

(3) ***In order to ensure a consistent application of this Regulation across the Union, the Commission shall adopt***

implementing acts establishing harmonized application forms for the registration of data intermediation service providers and data altruism organizations throughout the Union. These forms shall specify, in particular, a description of the intended nature of the data intermediation or data altruism activities, including the types of data involved, the categories of personal data, and the planned value-added services, so as to provide the competent authorities with sufficient and reliable information to carry out their supervisory duties.

Or. en

Amendment 290

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e

Text proposed by the Commission

Amendment

(5) The competent authority may charge fees for the registration in accordance with national law. Such fees shall be proportionate and objective and be based on the administrative costs related to the monitoring of compliance. In the case of small-mid caps, small and medium-sized enterprises, and start-ups, the competent authority may charge a discounted fee or waive the fee.

deleted

Or. en

Amendment 291

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 f

Text proposed by the Commission

Amendment

5a. Recognised data altruism organisations shall implement appropriate technical and organisational measures to prevent the re-identification of pseudonymised data, personal data breaches, and any unlawful acquisition, use, disclosure or transfer of the data made available to them. Where the data are processed or shared in pseudonymised or anonymised form, they shall apply state-of-the-art techniques for that purpose aimed at preserving and reinforcing privacy protection.

Or. fr

Amendment 292
David Cormand
on behalf of the Verts/ALE Group

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 ga new

Text proposed by the Commission

Amendment

(5a) Article 32ga (new) Mandatory complaint handling mechanism

A recognised data intermediation services provider or a recognised data altruism organisation shall set up a complaint handling mechanism through which data subjects or data holders can lodge a complaint in case of infringements to the requirements laid down in this Chapter. The recognised data intermediation services provider or a recognised data altruism organisation shall confirm receipt of such a complaint within 7 days and provide a reasoned reply within 21

days to the data subjects or data holder that lodged the complaint.

Or. en

Amendment 293

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 h

Text proposed by the Commission

Prohibition of localisation requirements for non-personal data within the Union

Amendment

Conditions applicable to localisation requirements for non-personal data within the Union

Or. fr

Amendment 294

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 h

Text proposed by the Commission

(1) Data localisation requirements for non-personal data ***shall be prohibited, unless*** they are justified on grounds of public security ***in compliance with the principle of proportionality or laid down on the basis of Union law.***

Amendment

(1) Data localisation requirements for non-personal data ***may be imposed where*** they are justified on grounds of public security, ***the resilience and continuity of essential services, a compelling legitimate interest, or the protection of national and economic security.***

Or. fr

Amendment 295

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 h

Text proposed by the Commission

(2) Member States shall ***immediately*** communicate to the Commission any draft act which introduces a new data localisation requirement or makes changes to an existing data localisation requirement in accordance with the procedures set out in Articles 5, 6 and 7 of Directive (EU) 2015/1535 of the European Parliament and of the Council.’

Amendment

(2) Member States shall communicate to the Commission any draft act which introduces a new data localisation requirement or makes changes to an existing data localisation requirement in accordance with the procedures set out in Articles 5, 6 and 7 of Directive (EU) 2015/1535 of the European Parliament and of the Council.’

Or. fr

Amendment 296

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32i – paragraph 1 c

Text proposed by the Commission

(c) research data pursuant to the conditions set out in Article 32t.

Amendment

(c) research data pursuant to the conditions set out in Article 32t, ***including clinical research data generated through publicly funded research programmes, clinical trials, registries and other scientific research activities.***

Or. en

Amendment 297

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

1a. Public sector bodies permitting the re-use of data and documents under this Chapter shall apply appropriate technical and organisational measures to prevent the re-identification of pseudonymised data, personal data breaches, and any unlawful acquisition, use, disclosure or transfer of the data. Where the data are made available in pseudonymised or anonymised form, state-of-the-art techniques aimed at preserving and reinforcing privacy protection shall be applied for that purpose. Data and documents relating to natural persons, or protected as trade secrets or through a legal obligation of confidentiality applicable to legal persons shall only be made available for re-use purposes when they have been anonymised or, where anonymisation is not possible, subject to appropriate safeguards, including such techniques and binding conditions imposed on the re-user preventing any re-identification or any misuse.

Or. fr

Amendment 298

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 i

1b. A public sector body having allowed the re-use of data and documents in accordance with this Chapter and having applied the measures referred to in paragraph 11 shall not be held liable for any unlawful use, re-identification,

disclosure or onward transfer of data carried out by the re-user or by any third party to which the re-user has made the data available. The re-user shall ensure that its re-use of data, and any onward transfer of data, complies with this Chapter and Union and national law, including Regulation (EU) 2016/679. The re-user shall be responsible for any misuse, any unlawful re-identification or any unauthorised transfer of data carried out by it or by such third parties. This paragraph shall be without prejudice to the liability of the public sector body in the event of breach of its obligations under this Chapter.

Or. fr

Amendment 299

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 i

Text proposed by the Commission

Amendment

(aa) data or documents whose disclosure would reveal trade secrets within the meaning of Directive (EU) 2016/943, or information otherwise protected by a legal obligation of confidentiality applicable to legal persons.

Or. fr

Amendment 300

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 i – paragraph 3

Text proposed by the Commission

Amendment

(ga) data or documents containing personal data relating to the health, fiscal or financial situation, domicile or civil status of natural persons, and personal data covered by a legal or professional obligation of confidentiality, in particular medical confidentiality or the confidentiality of court judgments, whose re-use may be detrimental to the rights and freedoms of the data subjects or may enable them to be identified.

Or. fr

Amendment 301

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 j

Text proposed by the Commission

Amendment

1a. The re-use of data and documents under this Chapter shall not entail their transfer to a third-country authority or a natural or legal person established in a third country, nor access by the latter to those data, where such transfer or access would be liable to have an adverse effect on public security, the resilience and continuity of essential services, or the national and economic security of the Union or a Member State.

Or. fr

Amendment 302

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 k – point d a

Text proposed by the Commission

Amendment

(da) an exclusive right shall not be granted to an entity established in a third country, nor to an entity established in the Union under the direct or indirect control of a third-country entity where granting that right would be liable to expose the data concerned to the extraterritorial application of third-country legislation or to have a detrimental effect on the defence, security or economic security of the Union or a Member State; before granting the right, the public sector body shall evaluate those risks, including any restrictive technical specification that might lead to such exposure or dependence.

Or. fr

Amendment 303
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32k – point 3

Text proposed by the Commission

Amendment

(3) By way of derogation of paragraph 1, where an exclusive right relates to the digitisation of cultural resources, the period of exclusivity shall ***in general*** not exceed 10 years. ***Where that period exceeds 10 years, its duration shall be in accordance with applicable Union and national law subject to review during the 11th year and, if applicable, every seven years thereafter.***

(3) By way of derogation of paragraph 1, where an exclusive right relates to the digitisation of cultural resources, the period of exclusivity shall not exceed 10 years, ***and for enterprises with a designation as a gatekeeper under Regulation (EU) 2022/1925, 5 years.***

Or. en

Amendment 304
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation 2023/2854
Article 32 k – point 6 a

Text proposed by the Commission

Amendment

6a. Such arrangements shall not have the aim or effect of conferring on a single enterprise, in particular a very large enterprise or an enterprise established in a third country or controlled from a third country, a position enabling it to capture data availability for the purposes of re-use to the detriment of other Union operators. Where such a risk is identified, the public sector body shall prioritise arrangements that preserve the access of operators established in the Union and which support cooperation between Member States.

Or. fr

Amendment 305
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation 2023/2854
Article 32 o

Text proposed by the Commission

Amendment

(3) In the event of a negative decision, the public sector bodies shall communicate the grounds for refusal to the applicant on the basis of the relevant provisions of the access regime in that Member State or the provisions of this Regulation, in particular **points (a) to (c) of paragraph 2 of Article 32i** and **points (a) to (d) of**

(3) In the event of a negative decision, the public sector bodies shall communicate the grounds for refusal to the applicant on the basis of the relevant provisions of the access regime in that Member State or the provisions of this Regulation, in particular **Article 32i(2)(a) to (c) and Article 32i(3)(a) to (d), reasons of public**

paragraph 3 of Article 32i or Article 32n (general principle ODD Section). Where a negative decision is based on *point (d) of paragraph 3 of Article 32i*, the public sector body shall include a reference to the natural or legal person who is the rightsholder, where known, or alternatively to the licensor from which the public sector body has obtained the relevant material. Libraries, including university libraries, museums and archives, shall not be required to include such a reference.

security defence or economic security referred to in Article 32i(2)(c) or Article 32m (general principle ODD Section). Where a negative decision is based on *Article 32i(3)(d)*, the public sector body shall include a reference to the natural or legal person who is the rightsholder, where known, or alternatively to the licensor from which the public sector body has obtained the relevant material. Libraries, including university libraries, museums and archives, shall not be required to include such a reference.

Or. fr

Amendment 306

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854
Article 32 p

Text proposed by the Commission

(6) Where making dynamic data available for re-use immediately after collection, as referred to in paragraph 5, would exceed the financial and technical capacities of the public sector body, thereby imposing a disproportionate effort, those dynamic data shall be made available for re-use within a time frame or with temporary technical restrictions that do not unduly impair the exploitation of their economic and social potential.

Amendment

(6) Where making dynamic data available for re-use immediately after collection, as referred to in paragraph 5, would exceed the financial and technical capacities of the public sector body, thereby imposing a disproportionate effort, those dynamic data shall be made available for re-use within a time frame or with temporary technical restrictions that do not unduly impair the exploitation of their economic and social potential. ***Temporary technical restrictions may also be applied, in so far as necessary and proportionate, where the immediate or large-scale making available of the data would be liable to have an adverse effect on the public security or economic security of the Union or a Member State.***

Or. fr

Amendment 307
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 q a

Text proposed by the Commission

Amendment

New Article 3qa.

Pseudonymisation and request for consent

1. Where data or documents made available for the purposes of re-use under this Chapter contain personal data, the public sector body shall, before allowing re-use, apply state-of-the-art techniques aimed at preserving and reinforcing privacy protection within the meaning of Article 4 of Regulation (EU) 2016/679, including pseudonymisation, in such a way as to reduce the probability of data being attributed to a specific natural person while preserving their usefulness for the purposes of re-use.

2. The measures referred to in paragraph 1 shall be designed to protect personal data relating to identifiable natural persons from re-identification, personal data breaches and unlawful use and trade, taking into account the means reasonably likely to be used. The residual risk of re-identification, including through algorithmic methods, shall be assessed and documented.

3. Where the re-use of personal data requires the consent of the data subject, the public sector body or the competent body shall facilitate the giving, refusal or withdrawal of such consent, including by automated and machine-readable means and, where applicable, through a service provider specialising in enhancing consent and the power to act under

Article 2(38)(f). Consent obtained for the objectives of re-use shall be specific to the purposes of the re-use and may not be presumed from the consent given for the initial purpose for which the data were collected.

4. This Article shall be without prejudice to Regulation (EU) 2016/679, which shall take precedence in the event of conflict and to the conditions applicable to the re-use of certain categories of protected data listed in Section 3.'

Or. fr

Amendment 308

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation 2023/2854

Article 32 q

Text proposed by the Commission

(1) The re-use of data or documents within the scope of this Section shall be free of charge. However, the recovery by the public sector body holding the data of the marginal costs incurred for the reproduction, provision and dissemination of such data or documents as well as for anonymisation of personal data and measures taken to protect commercially confidential information may be allowed.

Amendment

(1) The re-use of data or documents within the scope of this Section shall be free of charge. However, the recovery by the public sector body holding the data of the marginal costs incurred for the reproduction, provision and dissemination of such data or documents as well as for anonymisation of personal data, ***carried out in accordance with state-of-the-art techniques for the preservation and reinforcement of privacy***, and measures taken to protect commercially confidential information may be allowed.

Or. fr

Amendment 309

Sophia Kircher

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32q – paragraph 6

Text proposed by the Commission

(6) Public sector bodies may set out higher charges for the re-use of data and documents by very large enterprises than the charges provided for in paragraphs 1, 4 and 5. Any such charges shall be proportionate and based on objective criteria, taking into account the economic power, or the ability of the entity to acquire data, ***including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925***. In addition to the elements listed in paragraph 1 of this Article, such charges may cover the cost of collection, production, reproduction dissemination and data storage and where applicable the cost of anonymisation or measures to protect the confidentiality of the data or documents, together with a reasonable return on investment.

Amendment

(6) Public sector bodies may set out higher charges for the re-use of data and documents by very large enterprises ***with a designation as a gatekeeper under Regulation (EU) 2022/1925 other*** than the charges provided for in paragraphs 1, 4 and 5. Any such charges shall be proportionate and based on objective criteria, taking into account the economic power, or the ability of the entity to acquire data. In addition to the elements listed in paragraph 1 of this Article, such charges may cover the cost of collection, production, reproduction dissemination and data storage and where applicable the cost of anonymisation or measures to protect the confidentiality of the data or documents, together with a reasonable return on investment. ***The European Commission shall prepare guidelines to promote a harmonised system for charging such fees across Member States.***

Or. en

Amendment 310

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 q

Text proposed by the Commission

Amendment

6a. Where the re-use by such an enterprise, in particular an enterprise established in a third country or controlled from a third country, may expose high-value or strategically

sensitive data to the extraterritorial application of third-country legislation or may have a detrimental effect on the economic security of the Union or a Member State, the public sector body may, in addition to, or instead of imposing higher charges, make the re-use subject to binding conditions preventing onward transfer, re-identification or misuse, or may restrict re-use to the extent necessary and proportionate to this aim.

Or. fr

Amendment 311
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32r – paragraph 3

Text proposed by the Commission

(3) In Member States where licences are used, public sector bodies shall ensure that ***the*** standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format and able to be processed electronically.

Amendment

(3) In Member States where licences are used, ***Member States shall encourage the use of standard licenses for the re-use of public sector data or documents.*** Public sector bodies shall ensure that ***such*** standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format and able to be processed electronically.

Or. en

Amendment 312
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32r – paragraph 4

Text proposed by the Commission

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises. Such conditions shall be proportionate and should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data, ***including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925.***

Amendment

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises ***with a designation as a gatekeeper under Regulation (EU) 2022/1925.*** Such conditions shall be proportionate and should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data.

Or. en

Amendment 313

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 s

Text proposed by the Commission

Amendment

1a. A Member State may restrict the dissemination or re-use of certain research data where the applicable context does not offer adequate guarantees against the unauthorised transfer of knowledge, the infringement of intellectual property rights or the exposure of data to the extraterritorial application of third-country legislation liable to have a detrimental effect on the security or economic security of the Union or a Member State.

Or. fr

Amendment 314

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 v

Text proposed by the Commission

Amendment

(da) where they contain personal data, protected against any misuse or transfer to a third country liable to have a detrimental effect on the rights of the data subjects, through anonymisation or, where anonymisation is not possible, pseudonymisation carried out in accordance with state-of-the-art techniques aimed at preserving and reinforcing privacy protection;

Or. fr

Amendment 315
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 v

Text proposed by the Commission

Amendment

(db) where they contain data that may be regarded as trade secrets, know-how or other strategically sensitive economic information, made available subject to economic security safeguards including binding conditions imposed on the re-user designed to prevent any onward transfer or any misuse.

Or. fr

Amendment 316
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854
Article 32w – paragraph 3 ii

Text proposed by the Commission

Amendment

**(ii) subject to other forms of
preparation of personal data;**

deleted

Or. en

Amendment 317
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32w – paragraph 5 a

Text proposed by the Commission

Amendment

**(a) where there is no legal basis other
than consent for transmitting the data
under Regulation (EU) 2016/679, with the
consent of the data subjects;**

deleted

Or. en

Amendment 318
Virginie Joron

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32 x

Text proposed by the Commission

Amendment

(1) Where a re-user intends to transfer certain categories of protected data that are non-personal to a third country, it shall inform the public sector body of its intention to transfer such data and the purpose of such transfer at the time of requesting the re-use of the data. In the case of re-use based on the data holder's

(1) Where a re-user intends to transfer certain categories of protected data that are non-personal to a third country, it shall inform the public sector body of its intention to transfer such data and the purpose of such transfer at the time of requesting the re-use of the data ***and, in any event, prior to the conclusion of any***

permission the re-user shall, where appropriate with the assistance of the public sector body, inform the natural or legal person whose rights and interests may be affected of that intention, purpose and the appropriate safeguards. The public sector body shall not allow the re-use unless the natural or legal person gives permission for the transfer.

data sharing agreement. In the case of re-use based on the data holder's permission the re-user shall, where appropriate with the assistance of the public sector body, ***and in any event prior to the conclusion of any contractual data transfer agreement,*** inform the natural or legal person whose rights and interests may be affected of that intention, purpose and the appropriate safeguards. The public sector body shall not allow the re-use unless the natural or legal person gives permission for the transfer.

Or. fr

Amendment 319

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 x

Text proposed by the Commission

(3) The Commission may adopt implementing acts establishing model contractual clauses for complying with the obligations referred to in paragraph 2 of this Article. Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 46(2).

Amendment

(3) The Commission may adopt implementing acts establishing model contractual clauses for complying with the obligations referred to in paragraph 2 of this Article. ***Those model contractual clauses shall ensure the protection of trade secrets, protection against the unauthorised transfer of knowledge, and the protection of the economic security of the Union and its Member States.*** Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 46(2).

Or. fr

Amendment 320

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 x

Text proposed by the Commission

(4) Public sector bodies shall, where relevant and to the extent of their capabilities, provide guidance and assistance to re-users in complying with the obligations referred to in paragraph 2.

Amendment

(4) Public sector bodies shall, where relevant and to the extent of their capabilities, provide guidance and assistance to re-users in complying with the obligations referred to in paragraph 2, ***including by raising awareness among the parties concerned of the risks arising from the extraterritorial application of third-country legislation, the unauthorised transfer of knowledge, and the misuse or re-identification of data.***

Or. fr

Amendment 321

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 x

Text proposed by the Commission

(5) Where justified because of the substantial number of requests across the Union concerning the re-use of non-personal data in specific third countries, the Commission may adopt ***implementing acts declaring that*** the legal, supervisory and enforcement arrangements of a third country:

Amendment

(5) Where justified because of the substantial number of requests across the Union concerning the re-use of non-personal data in specific third countries, the Commission, ***assisted by the European Data Innovation Board and the European Data Protection Board,*** may adopt ***guidelines evaluating whether*** the legal, supervisory and enforcement arrangements of a third country:

Or. fr

Amendment 322

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 x

Text proposed by the Commission

Amendment

5a. Those guidelines shall be without prejudice to the national economic security frameworks of the Member States, which may restrict or prohibit the transfer of data to a third country irrespective of those guidelines.

Or. fr

Amendment 323

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 x

Text proposed by the Commission

Amendment

Specific Union legislative acts may deem certain non-personal data categories held by public sector bodies to be highly sensitive for the purposes of this Article where their transfer to third countries may put at risk Union public policy objectives, such as safety and public health or may lead to the risk of re-identification of non-personal, *anonymised* data. Where such an act is adopted, the Commission *shall adopt delegated acts in accordance with Article 45 supplementing this Regulation by laying down* special conditions applicable to the transfers of such data to third countries.

Specific Union legislative acts may deem certain non-personal data categories held by public sector bodies to be highly sensitive for the purposes of this Article where their transfer to third countries may put at risk Union public policy objectives, such as safety and public health or may lead to the risk of re-identification of *natural persons to whom pseudonymised or anonymised* non-personal data *relate*. Where such an act is adopted, the Commission , *assisted by the European Data Innovation Board and the European Data Protection Board, may publish guidelines on the* special conditions applicable to the transfers of such data to third countries. *Those conditions shall not have a detrimental effect on the national*

economic security frameworks of the Member States.

Or. fr

Amendment 324

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 y

Text proposed by the Commission

Amendment

(ea) provide technical support in relation to anonymisation, pseudonymisation and state-of-the-art methods to preserve privacy, including encryption and secure processing environments, not only for personal data but also for confidential business information, paying particular attention to the residual risk of re-identification, taking into account the means reasonably likely to be used;

Or. fr

Amendment 325

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32 y

Text proposed by the Commission

Amendment

5a. Member States shall remain responsible for establishing and operating a single, integrated national reporting portal for all statutory reporting obligations, including, as a minimum, notifications under the Cyber Resilience

Act (CRA), the NIS 2 Directive, the CER Directive, the DORA Regulation, the eIDAS Regulation and the GDPR.

Those national reporting portals are designed to be interoperable on the basis of uniform functional and technical requirements set by ENISA.

The national reporting portals provide for interoperable, automated and secure transmission of relevant notifications to competent authorities in other Member States and/or to ENISA, where this is necessary under Union law or national law.

ENISA performs a supporting and coordinating role in promoting interoperability, standardisation and quality assurance, without becoming responsible for central storage or processing of all incident notifications at Union level.

Or. fr

Amendment 326
Sophia Kircher

Proposal for a regulation
Article 1 – paragraph 1 – point 18
Regulation (EU) 2023/2854
Article 32ab – paragraph 2

Text proposed by the Commission

(2) In the case of exceptionally extensive and complex requests for re-use, that two-month period may be extended by up to 30 days. In such cases the competent public sector bodies or the competent bodies referred to in paragraph 1 of Article 32z shall notify the applicant as soon as possible that more time is needed for conducting the procedure, *together with the reasons for the delay.*

Amendment

(2) In the case of exceptionally extensive and complex requests for re-use, that two-month period may be extended by up to 30 days. In such cases the competent public sector bodies or the competent bodies referred to in paragraph 1 of Article 32z shall notify the applicant as soon as possible that more time is needed for conducting the procedure, *including an explanation of why additional time is needed.*

Amendment 327

David Cormand

on behalf of the Verts/ALE Group

Proposal for a regulation

Article 1 – paragraph 1 – point 18 a (new)

Regulation (EU) 2023/2854

Article 37

Present text

Article 37 - Competent authorities and data coordinators

1. Each Member State shall designate one or more competent authorities to be responsible for the application and enforcement of this Regulation (competent authorities). Member States may establish one or more new authorities or rely on existing authorities.

2. Where a Member State designates more than one competent authority, it shall designate a data coordinator from among them to facilitate cooperation between the competent authorities and to assist entities within the scope of this Regulation on all matters related to its application and enforcement. Competent authorities shall, in the exercise of the tasks and powers assigned to them under paragraph 5, cooperate with each other.

Amendment

18a. Article 37 - Competent authorities and data coordinators is amended as follows:

"1. Each Member State shall designate one or more competent authorities to be responsible for the application and enforcement of this Regulation (competent authorities). Member States may establish one or more new authorities or rely on existing authorities.

2. Where a Member State designates more than one competent authority, it shall designate a data coordinator from among them to facilitate cooperation between the competent authorities and to assist entities within the scope of this Regulation on all matters related to its application and enforcement. Competent authorities shall, in the exercise of the tasks and powers assigned to them under paragraph 5, cooperate with each other.

3. The supervisory authorities responsible for monitoring the application of Regulation (EU) 2016/679 shall be responsible for monitoring the application of this Regulation insofar as the protection of personal data is concerned. Chapters VI and VII of Regulation (EU) 2016/679 shall apply *mutatis mutandis*. The European Data Protection Supervisor shall be responsible for monitoring the application of this Regulation insofar as it concerns the Commission, the European Central Bank

3. The supervisory authorities responsible for monitoring the application of Regulation (EU) 2016/679 shall be responsible for monitoring the application of this Regulation insofar as the protection of personal data is concerned. Chapters VI and VII of Regulation (EU) 2016/679 shall apply *mutatis mutandis*. The European Data Protection Supervisor shall be responsible for monitoring the application of this Regulation insofar as it concerns the Commission, the European Central Bank or Union bodies. Where relevant, Article 62 of Regulation (EU) 2018/1725 shall apply *mutatis mutandis*. The tasks and powers of the supervisory authorities referred to in this paragraph shall be exercised with regard to the processing of personal data.

4. Without prejudice to paragraph 1 of this Article: (a) for specific sectoral data access and use issues related to the application of this Regulation, the competence of sectoral authorities shall be respected; (b) the competent authority responsible for the application and enforcement of Articles 23 to 31 and Articles 34 and 35 shall have experience in the field of data and electronic communications services.

5. Member States shall ensure that the tasks and powers of the competent authorities are clearly defined and include:

(a) promoting data literacy and awareness among users and entities falling within the scope of this Regulation of the rights and obligations under this Regulation;

or Union bodies. Where relevant, Article 62 of Regulation (EU) 2018/1725 shall apply *mutatis mutandis*. The tasks and powers of the supervisory authorities referred to in this paragraph shall be exercised with regard to the processing of personal data.

4. Without prejudice to paragraph 1 of this Article: (a) for specific sectoral data access and use issues related to the application of this Regulation, the competence of sectoral authorities shall be respected; (b) the competent authority responsible for the application and enforcement of Articles 23 to 31 and Articles 34 and 35 shall have experience in the field of data and electronic communications services.

5. Member States shall ensure that the tasks and powers of the competent authorities are clearly defined and include:

(a) promoting data literacy and awareness among users and entities falling within the scope of this Regulation of the rights and obligations under this Regulation;

(b) handling complaints arising from alleged infringements of this Regulation, including in relation to trade secrets, and investigating, to the extent appropriate, the subject matter of complaints and regularly informing complainants, where relevant in accordance with national law, of the

(b)handling complaints arising from alleged infringements of this Regulation, including in relation to trade secrets, and investigating, to the extent appropriate, the subject matter of complaints and regularly informing complainants, where relevant in accordance with national law, of the progress and the outcome of the investigation within a reasonable period, in particular if further investigation or coordination with another competent authority is necessary;

(c)conducting investigations into matters that concern the application of this Regulation, including on the basis of information received from another competent authority or other public authority;

(d)imposing effective, proportionate and dissuasive financial penalties which may include periodic penalties and penalties with retroactive effect, or initiating legal proceedings for the imposition of fines;

(e)monitoring technological and relevant commercial developments of relevance for the making available and use of data;

(f)cooperating with competent authorities of other Member States and, where relevant, with the Commission or the EDIB, to ensure the consistent and efficient application of this Regulation, including the exchange of all relevant information by electronic means, without undue delay, including regarding paragraph 10 of this Article;

(g)cooperating with the relevant competent authorities responsible for the implementation of other Union or national legal acts, including with authorities competent in the field of data and electronic communication services, with

progress and the outcome of the investigation within a reasonable period, in particular if further investigation or coordination with another competent authority is necessary;

(c)conducting investigations into matters that concern the application of this Regulation, including on the basis of information received from another competent authority or other public authority;

(ca) (new) impose corrective measures

(d)imposing effective, proportionate and dissuasive financial penalties which may include periodic penalties and penalties with retroactive effect, or initiating legal proceedings for the imposition of fines;

(e)monitoring technological and relevant commercial developments of relevance for the making available and use of data;

(f)cooperating with competent authorities of other Member States and, where relevant, with the Commission or the EDIB, to ensure the consistent and efficient application of this Regulation, including the exchange of all relevant information by electronic means, without undue delay, including regarding paragraph 10 of this Article;

(g)cooperating with the relevant competent authorities responsible for the implementation of other Union or national legal acts, including with authorities competent in the field of data and electronic communication services, with

the supervisory authority responsible for monitoring the application of Regulation (EU) 2016/679 or with sectoral authorities to ensure that this Regulation is enforced consistently with other Union and national law;

(h)cooperating with the relevant competent authorities to ensure that Articles 23 to 31 and Articles 34 and 35 are enforced consistently with other Union law and self-regulation applicable to providers of data processing services;

(i)ensuring that switching charges are withdrawn in accordance with Article 29;(j)examining the requests for data made pursuant to Chapter V.

Where *designated*, the *data coordinator shall facilitate the cooperation referred to in points (f), (g) and (h) of the first subparagraph and shall assist the competent authorities upon their request.*

6. The data coordinator, where such competent authority has been designated, shall:(a)act as the single point of contact for all issues related to the application of this Regulation;(b)ensure the online public availability of requests to make data available made by public sector bodies in the case of exceptional need under Chapter V and promote voluntary data sharing agreements between public sector bodies and data holders;(c)inform the Commission, on an annual basis, of the refusals notified under Article 4(2) and (8) and Article 5(11).

7. Member States shall notify the Commission of the names of the competent authorities and of their tasks and powers and, where applicable, the name of the data coordinator. The Commission shall maintain a public register of those authorities.

the supervisory authority responsible for monitoring the application of Regulation (EU) 2016/679 or with sectoral authorities to ensure that this Regulation is enforced consistently with other Union and national law;

(h)cooperating with the relevant competent authorities to ensure that Articles 23 to 31 and Articles 34 and 35 are enforced consistently with other Union law and self-regulation applicable to providers of data processing services;

(i)ensuring that switching charges are withdrawn in accordance with Article 29;

(j)examining the requests for data made pursuant to Chapter V.

Where the *competent authority finds that a provider of data intermediation services does not comply with one or more of the requirements laid down in this Chapter, it shall notify that provider of those findings and give it the opportunity to state its views, within a reasonable time limit.* The competent authorities *shall communicate the measures imposed pursuant to paragraph 4 and the reasons on which they are based to the entity concerned without delay and shall stipulate a reasonable period for the entity to comply with the measures.*

6. The data coordinator, where such competent authority has been designated, shall:(a)act as the single point of contact for all issues related to the application of this Regulation;(b)ensure the online public availability of requests to make data available made by public sector bodies in the case of exceptional need under Chapter V and promote voluntary data sharing agreements between public sector bodies and data holders;(c)inform the Commission, on an annual basis, of the

8. When carrying out their tasks and exercising their powers in accordance with this Regulation, competent authorities shall remain impartial and free from any external influence, whether direct or indirect, and shall neither seek nor take instructions for individual cases from any other public authority or any private party.

9. Member States shall ensure that the competent authorities are provided with sufficient human and technical resources and relevant expertise to effectively carry out their tasks in accordance with this Regulation.

10. Entities falling within the scope of this Regulation shall be subject to the competence of the Member State where the entity is established. Where the entity is established in more than one Member State, it shall be considered to be under the competence of the Member State in which it has its main establishment, that is, where the entity has its head office or registered office from which the principal financial functions and operational control are exercised.

11. Any entity falling within the scope of this Regulation that makes connected products available or offers services in the Union, and which is not established in the Union, shall designate a legal representative in one of the Member States.

12. For the purpose of ensuring compliance with this Regulation, a legal representative shall be mandated by an entity falling within the scope of this Regulation that makes connected products available or

refusals notified under Article 4(2) and (8) and Article 5(11).

7. Member States shall notify the Commission of the names of the competent authorities and of their tasks and powers and, where applicable, the name of the data coordinator. The Commission shall maintain a public register of those authorities.

8. When carrying out their tasks and exercising their powers in accordance with this Regulation, competent authorities shall remain impartial and free from any external influence, whether direct or indirect, and shall neither seek nor take instructions for individual cases from any other public authority or any private party.

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11. Any entity falling within the scope of this Regulation that makes connected products available or offers services in the Union, and which is not established in the

offers services in the Union to be addressed in addition to or instead of it by competent authorities with regard to all issues related to that entity. That legal representative shall cooperate with and comprehensively demonstrate to the competent authorities, upon request, the actions taken and provisions put in place by the entity falling within the scope of this Regulation that makes connected products available or offers services in the Union to ensure compliance with this Regulation.

13. An entity falling within the scope of this Regulation that makes connected products available or offers services in the Union, shall be considered to be under the competence of the Member State in which its legal representative is located. The designation of a legal representative by such an entity shall be without prejudice to the liability of, and any legal action that could be initiated against, such an entity. Until such time as an entity designates a legal representative in accordance with this Article, it shall be under the competence of all Member States, where applicable, for the purposes of ensuring the application and enforcement of this Regulation. Any competent authority may exercise its competence, including by imposing effective, proportionate and dissuasive penalties, provided that the entity is not subject to enforcement proceedings under this Regulation regarding the same facts by another competent authority.

14. Competent authorities shall have the power to request from users, data holders, or data recipients, or their legal representatives, falling under the competence of their Member State all information necessary to verify compliance with this Regulation. Any request for information shall be proportionate to the performance of the underlying task and shall be reasoned.

Union, shall designate a legal representative in one of the Member States.

12. For the purpose of ensuring compliance with this Regulation, a legal representative shall be mandated by an entity falling within the scope of this Regulation that makes connected products available or offers services in the Union to be addressed in addition to or instead of it by competent authorities with regard to all issues related to that entity. That legal representative shall cooperate with and comprehensively demonstrate to the competent authorities, upon request, the actions taken and provisions put in place by the entity falling within the scope of this Regulation that makes connected products available or offers services in the Union to ensure compliance with this Regulation.

13. An entity falling within the scope of this Regulation that makes connected products available or offers services in the Union, shall be considered to be under the competence of the Member State in which its legal representative is located. The designation of a legal representative by such an entity shall be without prejudice to the liability of, and any legal action that could be initiated against, such an entity. Until such time as an entity designates a legal representative in accordance with this Article, it shall be under the competence of

all Member States, where applicable, for the purposes of ensuring the application and enforcement of this Regulation. Any competent authority may exercise its competence, including by imposing effective, proportionate and dissuasive penalties, provided that the entity is not subject to enforcement proceedings under this Regulation regarding the same facts by another competent authority.

15. Where a competent authority in one Member State requests assistance or enforcement measures from a competent authority in another Member State, it shall submit a reasoned request. A competent authority shall, upon receiving such a request, provide a response, detailing the actions that have been taken or which are intended to be taken, without undue delay.

16. Competent authorities shall respect the principles of confidentiality and of professional and commercial secrecy and shall protect personal data in accordance with Union or national law. Any information exchanged in the context of a request for assistance and provided pursuant to this Article shall be used only in respect of the matter for which it was requested.

14. Competent authorities shall have the power to request from users, data holders, or data recipients, or their legal representatives, falling under the competence of their Member State all information necessary to verify compliance with this Regulation. Any request for information shall be proportionate to the performance of the underlying task and shall be reasoned.

15. Where a competent authority in one Member State requests assistance or enforcement measures from a competent authority in another Member State, it shall submit a reasoned request. A competent authority shall, upon receiving such a request, provide a response, detailing the actions that have been taken or which are intended to be taken, without undue delay.

16. Competent authorities shall respect the principles of confidentiality and of professional and commercial secrecy and shall protect personal data in accordance with Union or national law. Any information exchanged in the context of a request for assistance and provided pursuant to this Article shall be used only in respect of the matter for which it was requested."

Or. en

(32023R2854)

Justification

These changes are made to ensure that there is enforcement in case of non-compliance - this relates in particular to data intermediation services that do not share data appropriately or do not implement the safeguards properly

Amendment 328

Virginie Joron

Proposal for a regulation

Article 1 – paragraph 1 – point 20

Regulation (EU) 2023/2854

Article 40 – paragraph 6

Text proposed by the Commission

Amendment

**20. in Article 40, paragraph (6) is
inserted:** *deleted*

**6. This Article shall not apply to Chapter
VIIc.'**

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